

**IN THE MATTER OF AN ARBITRATION
BEFORE THE QATAR INTERNATIONAL CENTRE FOR CONCILIATION AND ARBITRATION**

BETWEEN:

**(1) AL ORAIQ REAL ESTATE INVESTMENT LLC
(STATE OF QATAR)**

Claimant

-and-

**SHAPOORJI PALLONJI QATAR WLL
(STATE OF QATAR)**

Respondent

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I. **INTRODUCTION**

- 1 The Claimant delivered its Notice of Arbitration on 15 September 2021, evidently in order to justify its calls on the Respondent's performance bond, advance payment guarantee and retention guarantee, which it sent to the banks on the following day, 16 September 2021.
- 2 At approximately the same time, the Respondent delivered a Request for Arbitration in which it sought to refer its claims for extensions of time, payment of prolongation costs, payment of compensation for variations and payment of compensation for disruption to arbitration. The determination of the Claimants' claims are by and large dependent upon the determination of the Respondents' claims.
- 3 Nonetheless, and at the request of the Claimant, the parties agreed that the Respondent would withdraw its Request for Arbitration and would advance its claims in this arbitration by way of counterclaims and defences to the Claimants' claims. Consequently, the Respondent hereby files its Statement of Defence which must be read in conjunction with its counterclaims, the determination of which will be dispositive of the Claimants' claims.
- 4 In doing so, the Respondent will address the Claimants' claims as follows:
 - 4.1 The Respondent will, for the benefit of the Tribunal, set out an executive summary of the Respondent's defences to the claims;
 - 4.2 The Respondent will address the Claimants' claims which are time related and which will be largely dependent upon the determination of the Respondent's extension of time claims;
 - 4.3 The Respondent will address the claims which are dependent upon allegations of the Respondents' alleged non-performance, rectification of defects or incomplete works;
 - 4.4 The merit of the Employer's supposed Subclause 2.5 claim;
 - 4.5 The balance of the Claimants' claims (almost all of which have not yet been quantified).

5 The Respondent will not address the Statement of Claim *ad seriatim*, but as explained, by themes and categories. To the extent that any particular allegation in the Statement of Claim is not specifically addressed by the Respondent, such allegation must be taken as denied.

II. **EXECUTIVE SUMMARY OF RESPONDENT'S DEFENCE**

6 The Claimants' claims can be broadly categorised into the following categories:

- 6.1 Claims which are time related and are dependent upon the Claimant's allegation that the Respondent failed to bring the works to completion timeously. These claims ignore the Respondent's extension of time claims in order to assert claims for payment of liquidated damages, time related costs and loss of rental income;
- 6.2 The second category of claims relates to the Claimant's allegation that the Respondent failed to remedy notified defects or failed to bring aspects of the work to completion which the Claimant is allegedly now completing at its expense. Those claims are dependent on the correctness of the allegation that defects were not remedied, whether the Respondent in fact received notification of defects and the consequences of the Claimant's election to unlawfully instruct the Respondent to vacate certain parts of the work so as to take occupation of those works itself.

Time Related Claims

7 The time related claims comprise of the following:

- 7.1 Delay damages under Clause 8.7 of the Contract. Those delay damages are largely dependent upon the merits of the Respondent's extension of time claims which if upheld will be dispositive of this claim. In addition, these claims are affected by the Claimant's indemnification of the Respondent against the malperformance of the joinery subcontractor;

- 7.2 Claims for payment of additional consultant costs. The Respondent disputes that the Claimant has any contractual basis for these claims but they will, in any event, be disposed of by the extension of time claims;
- 7.3 Payment of the delay penalties imposed upon the Claimant by the Master Developer ("the UDC penalties"). This claim too will be disposed of by the Respondent's extension of time claims;
- 7.4 The Claimants claim for alleged loss of rental incurred by virtue of the delayed completion of the project. Firstly, the extension of time claim will dispose of this. Secondly, the Respondent denies that such claims for consequential losses are competent as a matter of law and as a matter of contract.
- 8 The Respondent will address the history of the extension of time claims submitted to the Claimant and its Engineer during the course of the Contract and the Engineer's failure to fairly and lawfully determine those claims in accordance with its obligations under the Contract.
- 9 The Respondent will show that a fair and proper determination of its extension of time claims will extend the Time for Completion to at least 2 February 2021 and that the works had either been completed or deemed to be completed and taken over in terms of Clause 10.2 prior to that date, thus disposing of the Claimant's time related claims. As appears from the Respondent's counterclaim, the retrospective, as built delay analysis is ongoing and may well establish a revision of the Time for Completion beyond 2 February 2021.

Performance Related Claims

- 10 The Claimants' claims which rely on allegations of non-performance on the part of the Respondent comprise of the following:
- 10.1 Defects which the Claimant contends were notified to the Respondent but have not been attended to;

- 10.2 Claims from tenants which allegedly arose from defects in the works, as a result of which the tenants were unable to use the property for its intended purpose;
- 10.3 Outstanding works which the Claimant alleges was not completed and which it has had to complete at its own expense.
- 11 Insofar as the defects are concerned, the Respondent will show that all defects which were properly notified have either been attended to or could not be attended to because the Claimant refused to give the Respondent access to those sections of the work, having taken occupation of the works and instructed the Respondent to vacate those sections.
- 12 As far as the tenant related claims are concerned, the Respondent will show:
- 12.1 The defects in question were either not notified to the Respondent in accordance with the contractual provisions or where they were notified, the defects were attended to within a reasonable period of time;
- 12.2 The claims in question all arose from the Claimant's election to either relocate the tenants at the Claimants' expense or to give the tenant a rental rebate. In either case there was no legal obligation on the Claimant to have done so and consequently, there is no basis upon which the Claimant is able to hold the Respondent liable for costs voluntarily incurred by the Claimant.
- 13 Finally, and insofar as the claims for outstanding works are concerned, the Respondent will show that it tendered to complete those works which were not completed but was not given access in order for it to do so. The Claimant therefore precluded the Respondent from completing certain defects attendances despite the Respondent's offer and readiness to do so.

The Respondent's Counterclaims

- 14 In contrast to the claims which the Claimant advances, and which the Respondent contends are without merit, the Respondent will show that the Claimant is substantially indebted to the Respondent.
- 15 Firstly, the Respondent and the Engineer instructed numerous variations and changes in the works, as a result of which additional costs amounting to QAR90,546,757 were incurred by the Respondent. In many instances the variations are not disputed by the Claimant and in fact are common cause but the Claimant has nonetheless not paid the Respondent compensation due for the varied works and the Engineer has refused to certify those claims. In other instances, the parties accept that variations were instructed but there is a dispute about the value of the compensation payable to the Respondent by virtue thereof.
- 16 Secondly, the Respondent submitted eleven extension of time claims over the course of the project. The first four extension of time claims were never adjudicated by the Engineer but summarily refused the claims without any analysis, in breach of the Engineer's obligations under the Contract. Time claims 5 – 10 were summarily dismissed and the final claim was dismissed by the Engineer on spurious grounds. The Respondent will show that a fair and proper assessment of its extension of time claims will extend the Time for Completion from 13 September 2018 to 17 April 2021 and that the Respondent is entitled to payment of prolongation costs for the extended contract period.
- 17 Consequently, the Respondent's position is that:
- 17.1 The claims advanced by the Claimant in these arbitration proceedings are without merit and should be dismissed;
- 17.2 To the extent that the Respondent's extension of time claims are not entirely dispositive of the Claimants' claims for liquidated damages, those claims in any event fall to be set-off against the claims payable by the Claimant to the Respondent;

- 17.3 The Claimant is substantially indebted to the Respondent, as will be more fully particularised in the Respondent's counterclaim and the Tribunal ought therefore to direct that the Claimant make payment to the Respondent in accordance with the Tribunal's determination of the counterclaims.

III. **CLAIMANT'S TIME RELATED CLAIMS**

History of Extension of Time Claims and Engineers' Responses

- 18 The Claimant's time related claims are premised upon the following:
- 18.1 The original Time for Completion of the works was 30 September 2018;¹
- 18.2 Addendum No.1 to the Contract which was imposed upon the Respondent by the Claimant and is voidable at the instance of the Tribunal, extended the Time for Completion until 15 July 2019. The extension of time imposed by the Claimant through the Addendum did not take into account the actual delays suffered by the Respondent but was imposed by the Claimant as the date of 15 July 2019 as the date beyond which the Claimant would be exposed to delay penalties at the instance of the master developer. The Respondent contends that Addendum No.1 is unenforceable for the reasons set out more fully in the counterclaim;
- 18.3 Aside from the extension to the Time for Completion through Addendum No.1, the Respondent has established and is entitled to a further extension of time and consequently, the Respondent is not liable for the time related claims to the extent that the works were completed after 15 July 2019.
- 19 Throughout the project the Engineer administered the Contract unlawfully and in accordance with the directions of the Employer. In doing so, the Engineer failed to comply with its obligations to lawfully within the time prescribed by the Contract and

¹ The Contract duration was 40 months as appears from the Letter of Award (Claimant's Exhibit C-4) and the Particular Conditions (Claimant's Exhibit C-6). See also Exhibit R-17 – Respondent's letter dated 19 August 2015 – ref: AQ5AQ6-SPQ-MED-GEN-LET-0012.

properly determine the Respondent's entitlement to extensions of time and revisions of the Time for Completion as a consequence of which the Respondent's entitlement to such revision to the Time for Completion which it had established is not taken into account by the Claimant in particularising its time related claims. This is an aspect which will be addressed in greater detail in the Respondent's counterclaim.

20 Clause 8.4 of the Contract stipulates:

"The Contractor shall be entitled subject to Sub-clause 20.1 [Contractor's Claims] to Completion an extension of the Time for Completion if and to the extent that completion for the purposes of Sub-Clause 10.1 [Taking Over of the Works and Sections] is or will be delayed by any of the following causes:

- (a) a Variation (unless an adjustment to the Time for Completion has been agreed under Sub-Clause 13.3 [Variation Procedure]) or other substantial change in the quantity of an item of work included in the Contract,*
- (b) a cause of delay giving an entitlement to extension of time under a Sub-Clause of these Conditions,*
- (c) Unforeseeable shortages in the availability of personnel or Goods caused by epidemic or governmental actions, or*
- (e) any delay, impediment or prevention caused by or attributable to the Employer, the Employer's Personnel, or the Employer's other contractors on the Site.*

but provided that:

- (e) the Contractor has made reasonable and proper efforts to mitigate such delay,*
- (f) any such delay which exhibits concurrency with another delay the cause of which is the responsibility of the Contractor, then, subject to compliance with Particular Condition Sub-Clause 20.1, the Contractor shall be entitled to an extension but without any entitlement to compensation for associated loss and expense.*

If the Contractor considers himself to be entitled to an extension of the Time for Completion, the Contractor shall give notice to the Engineer in accordance with Sub-Clause 20.1 [Contractor's Claims]. When determining each extension of time under Sub-Clause 20.1, the Engineer shall review previous determinations and may

increase, but shall not decrease, the total extension of time."

- 21 The Particular Conditions also recognised the importance of the Engineer properly assessing a request by the Respondent for the time for completion to be extended and stipulates:

"The Engineer's determination shall be based on the effect of each Employer Delay Event applied to the accepted monthly programme update current at the time the Employer Delay Event occurred using Time Impact Analysis Method.

When an Employer Delay Event occurs during a period of delay for which there is no entitlement to an extension of Time for Completion, such determination shall be made using the Net Method."

- 22 In the event that the Claimant does submit a claim to the Engineer to seek an extension of time and revision to the Time for Completion, the Engineer is in terms of Clause 20.1 required to determine the Claimant's entitlement within 42 days of receipt of the Claimant's application for an extension of time by either approving or disapproving the application.

- 23 In exercising the obligation to assess an application for an extension of time in terms of Clause 20.1 the Engineer does so in accordance with Clause 3.5 which stipulates:

"Whenever these Conditions provided the Engineer shall provide in accordance with this Subclause 3.5 to agree or determine any matter, the Engineer shall consult with each party in an endeavour to reach agreement. If agreement is not achieved, the Engineer shall make a fair determination in accordance with the Contract, taking due regard of all circumstances.

The Engineer shall give notice to both Parties of each agreement or determination, with supporting particulars. Each Party shall give effect to each agreement or determination unless or until revised under Clause 20."

- 24 On 5 January 2017, the Respondent delivered an application in terms of Clause 8.4 of the Contract for a revision of the Time for Completion to 19 September 2019.² The Engineer did not substantively respond to the request at all, but summarily rejected the claim.
- 25 On 20 June 2017, the Respondent delivered a second application for revision of the Time for Completion, to 21 July 2019.³ The Engineer failed to respond substantively to the application for an extension of time or to make any determination thereof and summarily rejected the claim.
- 26 On 15 March 2018, the Respondent delivered an application to the Engineer in terms of Clause 8.4 of the Contract for a revision of the Time for Completion to 30 December 2019.⁴ The Engineer failed to respond to the request at all, or to make any determination thereof.
- 27 On 9 October 2018, the Engineer responded by rejecting the Respondent's request for a revision to time for completion and demanding that the Respondent resubmit its requests. In this regard it also confirmed that the Engineer had undertaken no technical assessment or review of the Respondent's applications and stated "*our office shall exercise a technical review upon submission of complete claim requirement as per contract*".⁵
- 28 Following on requests by the Respondent for its extension of time applications to be determined, the Engineer wrote to the Respondent on 13 October 2018 in which it stated only that:
- "It is very irrational and unethical for your office to reply to an official letter using illogical and unreasonable as keywords.*
- Your office submitted EOT March 2018 with cut-off dated being January 2018, contract completion September 2018, after review and analysis your EOT3*

² Exhibit R-18 – Respondent's letter to the Engineer – ref: AQ5AQ6-SPQ-MED-GEN-LET-0298.

³ Exhibit R-19 – Respondent's letter to the Engineer – ref: AQ5AQ6-SPQ-KER-GEN-LET-0438.

⁴ Exhibit R-20 – Respondent's letter to the Engineer – ref: AQ5AQ6-SPQ-MED-GEN-LET-0691.

⁵ Exhibit R-21 – Engineer's letter dated 9 October 2018 – ref: AQ5AQ6-KER-SPQ-LET-0708.

submission, kernel found none of SPQ events held merit to qualify for EOT as claimed and a letter was sent to your office in perfect manner requesting for updates in order to evaluate it with your previous submissions and establish justification...

Based on the above Kernel requested for updated EOT events, SPQ should reply responsibility (Kernel requesting to stick on EOT 03), by providing the updated events rather than sending rare instances letter to justify your obligation as claimed.

Kernel is not in state of holding SPQ EOT if valid, as a result of your response, conclusions are underway to phase out this EOT 3 based consultation with client and final assessment".⁶

- 29 The Engineer therefore advised that it required the Respondent to provide an updated extension of time claim, as a result of which the Respondent delivered a further extension of time claim on 3 November 2018, further revising the date for completion to 28 September 2020.⁷
- 30 On 12 December 2018, the Engineer wrote to the Respondent advising that "*it is understandable that the Contractor already requested for extension of time (EOT) which is currently under observation by the Employer*".⁸ It was therefore made clear by the Engineer that it was not independently determining the Respondent's extension time claims but was determining those claims in accordance with and as instructed by the Claimant.
- 31 By February 2019, the Engineer and Claimant had failed and refused to determine any of the Respondent's claims for revisions of the time for completion, had not extended the time for completion and had not made payment of any prolongation costs. Accordingly, by that time despite the fact that the Respondent was entitled to a substantial revision of the time for completion, the contractual time for completion had lapsed. Against this background, on 18 February 2019, the Claimant presented the Respondent with Addendum No.1. For the reasons more fully set out in the

⁶ Exhibit R-22 – Engineer's letter dated 13 October 2018 - ref: AQ5AQ6-KER-SPQ-LET-0711.

⁷ Exhibit R-23 – Respondent's letter dated 3 November 2018 – ref: AQ5AQ-SPQ-KER-GEN-LET-0865.

⁸ Exhibit R-24 – Engineer's letter dated 12 December 2018 ref: AQ5AQ6-KER-SPQ-LET-0741.

counterclaim, that addendum is unenforceable as a matter of law. However, by way of Addendum No.1, the Claimant purported to unilaterally extend the Time for Completion to 15 July 2019 whereas the Respondent had already established an entitlement for an extension of time to 28 September 2020.

32 Subsequent to Addendum No.1 the Respondent continued to experience delays arising from the Claimant and the Engineer. Consequently, on 22 June 2019 it submitted a further application for revision of the Time for Completion to 3 May 2020.⁹

33 On 23 June 2019, the Engineer advised that the request for an extension of time was rejected because there was no revised program as required by Addendum No.1.¹⁰

34 As is more fully set out below and in the Respondent's counterclaim, this statement was to the Engineer's knowledge untrue and revised programs had been submitted. Consequently, the Engineer failed to consider the merits of the application for an extension of time and breached its obligations under Clause 3.5 of the Contract.

35 On 23 September 2019 the Respondent delivered a further request for revision to the Time for Completion to 2 July 2020.¹¹

36 As the Engineer had previously done, the application for an extension of time was rejected without regard to the merits and by way of a letter dated 30 September 2019 advised of the rejection of the application as "*no approved or approved as note program*" existed.¹²

37 Consequently, the Engineer had again breached its obligations owed to the Respondent under Clause 3.5 of the Contract.

⁹ Exhibit R-23 – Respondent's letter to the Engineer – ref: AQ5AQ6-SPQ-KER-GEN-LET-0865.

¹⁰ Exhibit R-25- Engineer's letter dated 23 June 2019 – ref: AQ5AQ6-KER-SPQ-LET-0830.

¹¹ Exhibit R-26 – Respondent's letter to the Engineer – ref: AQ5AQ6-SPQ-KER-GEN-LET-1053.

¹² Exhibit R-27 – Engineer's letter – ref: AQ5AQ6-KER-SPQ-LET-0901.

38 On 19 March 2020, the Respondent delivered a further application for revision of the Time for Completion to 6 September 2020.¹³

39 Again the Engineer, in breach of its obligations under Clause 3.5 summarily refused the application.¹⁴ Having continually refused to accept or approve the Respondent's revised programme, delivered after the execution of Addendum No. 1, the Engineer stated *"for all the above Kernel is unable to continue our review or accept any claim analysis that is not fully justified with approved programme in place in compliance with Addendum No. 1 to main contract signed 18 February 2019"*.

40 On 14 July 2020, the Respondent delivered a further request for a revision of the Time for Completion to 27 December 2020.¹⁵

41 Again, and in breach of its obligations under Clause 3.5, the Engineer summarily refused the application.¹⁶ In rejecting the Respondent's claims the Engineer stated:

"SPQ is expected to desist from perusing claim where it never existed, SPQ 'wants' cannot supersede the project 'needs'. Instead SPQ shall expedite the progress of the works to avoid any further delay.

As mentioned in previous Delay Damages correspondence, after going through the SPQ mixed narratives of the project events and all the causes of delay, the provided information by SPQ does not have the credibility to annul damages levied on the Contractor. It is evident these delays were direct result of non-compliance with Contractual Obligations and consistent failure to adhere to Kernel's directions, and resulted in rejection of SPQ EOT claims in accordance with the terms and conditions of contract and Addendum No. 1.

The basis of SPQ letter lack's proactive justification to seek for EOT now or in the near future."

¹³ Exhibit R-28 – Respondent's letter to the Engineer – ref: AQ5AQ6-SPQ-KER-GEN-LET-1097.

¹⁴ Exhibit R-29 – Engineer's letter – ref: AQ5-AQ6-KER-SPQ-LET-0998.

¹⁵ Exhibit R-30 – Respondent's letter to the Engineer – ref: AQ5AQ6-SPQ-KER-GEN-LET-1191.

¹⁶ Exhibit R-31 – Engineer's letter -ref: AQ5AQ6-KER-SPQ-LET-1130.

- 42 On 24 December 2020, the Respondent delivered a further request for a revision of the Time for Completion to 18 March 2021.¹⁷
- 43 On 15 April 2021, the Engineer wrote to the Claimant in which it stated, *inter alia*:
- "Firstly, the Engineer strongly rejects the contractors suggestion that the Engineers Determination may not be valid due to alleged lack of discussion on the claims with the contractor and employer before the determination was issued. The Engineer has issued his determinations pursuant to sub-clause 3.5 considering the claims advanced by the contractor in the full context of issues that have been discussed contemporaneously since the contractors failure to completion and handover the Project on or before 15 July 2019."*¹⁸
- 44 The Engineers correspondence was clearly at odds with the facts and sought to justify its conduct. The letter went on to reject the Respondent's request for an extension of time.¹⁹
- 45 On 5 May 2021, the Respondent delivered a further request for an extension of the Time for Completion to 7 July 2021.²⁰
- 46 The Respondent received no response from the Engineer to its request for an extension of time and delivered extension of time number eleven on 12 August 2021 in which it sought a revision of the Time for Completion. The Respondent provided a detailed analysis of the delay events and extension entitlement from the date of commencement until the date of Addendum No.1. It also provided a detailed delay analysis for delay events which had taken place since Addendum No.1 up until the date of the application, and sought an extension of the Time for Completion to 27 July 2021.²¹

¹⁷ Exhibit R-32 – Respondent's letter to the Engineer – ref: AQ5AQ6-SPQ-KER-GEN-LET-1294.

¹⁸ Exhibit R-33 – Engineer's letter dated 15 April 2021 – ref: AQ5AQ6-KER-SPQ-LET-1361.

¹⁹ Exhibit R-32 – Respondent's letter dated 24 December 2020 – ref: AQ5AQ6-SPQ-KER-GEN-LET-1294.

²⁰ Exhibit R-34 – Respondent's letter to the Engineer – ref: AQ5AQ6-SPQ-KER-GEN-LET-1346.

²¹ Exhibit R-15 – Respondent's letter to the Engineer – ref: AQ5AQ6-SPQ-KER-GEN-LET-1400.

47 On 7 October 2021 the Engineer wrote to the Respondent purporting to respond to extension of time claims 10 and 11 delivered on 5 May 2021 and 12 August 2021 respectively.²² By way of that letter, the Engineer rejected all extension of time claims and claims for payment of prolongation costs.

48 The Engineer, in purporting to respond to the extension of time claims was biased in favour of the Claimant, determined the claims on the instructions of the Claimant and conducted itself in an abusive manner and administered the Contract in bad faith. Furthermore, the Engineer simply ignored and acted in breach of the obligations imposed upon it by clauses 3.5 and 20.1 of the Contract. The Claimant is liable and responsible for the unlawful conduct of the Engineer and the consequences thereof. This will be addressed in further detail in the Respondents counterclaims.

49 As is more fully set out in the Respondent's counterclaims, the Respondent has conducted a further assessment of all delay events, based on the as-built critical path and has determined that it is entitled to an extension of time of 903 days, revising the Time for Completion to 2 February 2021.

Revised programme

50 In paragraphs 6.2 to 6.17 of the Statement of Claim, the Claimant alleges that the Respondent failed to provide a revised programme after the conclusion of Addendum No. 1 and as a consequence no extension of time claims could be assessed, as there was no revised programme against which to assess any extension of time claim.

51 This is, to the knowledge of both the Engineer and the Claimant, untrue and is designed to justify the intentional refusal on the part of the Claimant and Engineer to properly assess the extension of time claims. More particularly:

51.1 On 4 March 2019 the Respondent wrote to the Engineer confirming that they were working on a revised programme but were still awaiting crucial information regarding the joinery works for which Mobica was responsible. Mobica was the joinery contractor appointed on the instruction of the

²² Exhibit R-35 – Engineer's letter dated 7 October 2021 – ref: AQ5AQ6-KER-SPQ-LET-1458.

Claimant and for which the Claimant had indemnified the Respondent against any losses sustained due to malperformance on the part of Mobica. Nonetheless, the Respondent hoped to deliver the revised programme by 4 April 2019.²³

51.2 On 27 March 2019 the Respondent wrote to the Engineer with respect to the revised project programme and again pointed out that the specialist selected sub-contractor for the joinery, Mobica, continued causing delays and that their works were clearly on the critical path. The Respondent therefore appealed to the Claimant and its consultants to assist in obtaining the required information from Mobica.²⁴

51.3 On 22 June 2019, the Respondent submitted an updated programme and explained in the letter how the revised programme had been arrived at.²⁵ It was further explained that the programme was updated from the previously revised programme submitted on 16 October 2018.

51.4 On 2 July 2019 the Respondent provided a further revised programme, which it stated accorded with the dates and details contained in Addendum No. 1 to the Contract. It further recorded that:

51.4.1 there were a number of ongoing delay events which would impact the programme, which were all Employer related delay events;

51.4.2 nonetheless, the Respondent had been instructed to submit a revised programme which it was duly doing but it

²³ Exhibit R-36 – Respondent’s letter to the Engineer dated 24 March 2019 – ref: AQ5AQ6-SPQ-KER-GEN-LET-0954.

²⁴ Exhibit R-37 – Respondent’s letter to the Engineer dated 27 March 2019 – ref: AQ5AQ6-SPQ-KER-GEN-LET-0956.

²⁵ Exhibit R-38 – Respondent’s letter to the Engineer dated 22 June 2019 – ref: AQ5AQ6-SPQ-KER-GEN-LET-0990.

expressly reserved the right to further revise the programme as part of its claims for extensions of time.²⁶

51.5 On 23 July 2019 the Respondent again wrote to the Engineer and recorded the fact that the Engineer had failed to properly assess the programme and in that letter stated:

"The Engineer is requested to evaluate the programme in a proper manner and provide approval at the earliest".²⁷

51.6 This was again reiterated by the Respondent and the Respondent again called upon the Engineer to professionally and properly assess the programme by further letter dated 29 July 2019.²⁸

51.7 Following further discussions between the Respondent and the Engineer, the Engineer ultimately wrote to the Respondent on 22 September 2019 stating that:

"The revised programme submitted by SPQ will be accepted for record and information only. This programme shall not be considered for any future claims from the Contractor or neither shall it stand as contractual documents in the event of any variation evaluation as the programme was submitted late".²⁹

51.8 The Engineer thus deliberately refused to engage meaningfully with the Respondent to approve the programme or to arrive at a programme acceptable to it, which could be used for the administration of the contract in the future.

²⁶ Exhibit R-39 – Respondent's letter to the Engineer dated 2 July 2019 – ref: AQ5AQ6-SPQ-KER-GEN-LET-0992.
²⁷ Exhibit R-40 – Respondent's letter to the Engineer dated 23 July 2019 – ref: AQ5AQ6-SPQ-KER-GEN-LET-1001.
²⁸ Exhibit R-41 - Respondent's letter to the Engineer dated 29 July 2019 – ref: AQ5AQ6-SPQ-KER-GEN-LET-1007.
²⁹ Exhibit C-55.

52 The Respondent therefore denies that it failed or refused to provide revised programmes. It did so and highlighted the areas where there was insufficient information relating primarily to either Employer delay events or a failure on the part of the joinery contractor, who had been appointed at the instruction of the Claimant.³⁰

Allegations of Contractor Delay

53 In paragraphs 6.18 to 6.23 the Claimant alleges that the works were delayed by the Respondent, as a consequence of having provided insufficient labour, failure to attend to defects timeously and other supposed breaches of contract on the part of the Respondent. This is denied and it is the Respondent's position that the Contractor was delayed by Employer delay events or events beyond the control of the parties. That will be addressed in greater detail in the counterclaim, witness statements and expert witness reports in due course.

54 In support of these allegations, the Claimant attaches an Appendix 1 to the Statement of Claim a schedule which it describes as a non-exhaustive schedule of letters sent by the Engineer to the Respondent, to supposedly highlight issues pertaining to delayed progress due to the Respondent's conduct. The Claimant has, however, not provided any of the responses given by the Respondent to those Engineer letters. The Claimant states in paragraph 6.20 that the table in Appendix 1 contains the Taking Over Dates for each area identified within that Appendix. However, the Appendix does not identify any particular area and the dates in the third column are simply the dates of the Engineer's letter referenced in the first column. The statement is therefore not understood.

55 The Respondent sets out below a replication of Appendix 1 but has added in the first column the Claimant exhibit reference which constitutes the Engineer's letter referred

³⁰ Exhibit R-134 - Engineer's letter dated 22 September 2019 ref: AQ5AQ6-KER-SPQ-LET-0893.
Exhibit R-135 - Respondent's letter dated 12 September 2019 ref: AQ5AQ6-SPQ-KER-GEN-LET-1044.
Exhibit R-136 - Respondent's letter dated 17 September 2019 ref: AQ5AQ6-SPQ-KER-GEN-LET-1045.
Exhibit R-137 - Respondent's letter dated 22 September 2019 ref: AQ5AQ6-SPQ-KER-GEN-LET-1051.
Exhibit R-138 - Respondent's letter dated 5 October 2019 ref: AQ5AQ6-SPQ-KER-GEN-LET-1056.
Exhibit R-139 - Respondent's letter dated 19 November 2019 ref: AQ5AQ6-SPQ-KER-GEN-LET-1070.

to and has added a column to the right, identifying the references for the letters addressed by the Respondent to the Engineer in reply, in which the merits of the Engineer's complaints were responded to and disposed of.

Attachment	Letter Ref	Subject	Date	SPQ reply ref.
AOQ-Exhibit C-114	AQ5AQ6-KER-SPQ-LET-0779	Project Handing Over, Snag Report	3-Mar-19	
AOQ-Exhibit C-115	AQ5AQ6-KER-SPQ-LET-0781	Project Delays - Shortage of Staff-Lack of Supervision	6-Mar-19	AQ5AQ6-SPQ-KER-GEN-LET-0951 ³¹
AOQ-Exhibit C-129	AQ5AQ6-KER-SPQ-LET-0967	Request Finishes Team Organization Chart	15-Mar-19	AQ5AQ6-SPQ-KER-GEN-LET-1188 ³²
AOQ-Exhibit C-116	AQ5AQ6-KER-SPQ-LET-0799	Contractor Performance - Project Delays	11-Apr-19	AQ5AQ6-SPQ-KER-GEN-LET-1001 ³³
AOQ-Exhibit C-56	AQ5AQ6-KER-SPQ-LET-0829	Contractor Performance and Non- Compliance - Project Delays	22-Jun-19	AQ5AQ6-SPQ-KER-GEN-LET-1001 ³⁴
AOQ-Exhibit C-58	AQ5AQ6-KER-SPQ-LET-0840	Contractor Performance - Letter of Default	15-Jul-19	AQ5AQ6-SPQ-KER-GEN-LET-1001 ³⁵
AOQ-Exhibit C-117	AQ5AQ6-KER-SPQ-LET-0842	Abraj Quartier - Notice for Delay Damages	15-Jul-19	AQ5AQ6-SPQ-KER-GEN-LET-1007 ³⁶
AOQ-Exhibit C-52	AQ5AQ6-KER-SPQ-LET-0843	Project Revised Schedule Submission	17-Jul-19	AQ5AQ6-SPQ-KER-GEN-LET-1001 ³⁷
AOQ-Exhibit C-118	AQ5AQ6-KER-SPQ-LET-0849	Contractor Performance - Letter of Default & Revise Schedule	25-Jul-19	AQ5AQ6-SPQ-KER-GEN-LET-1007 ³⁸
AOQ-Exhibit C-59	AQ5AQ6-KER-SPQ-LET-0858	Notice of Delay Damages	6-Aug-19	AQ5AQ6-SPQ-KER-GEN-LET-1023 ³⁹
AOQ-Exhibit C-119	AQ5AQ6-KER-SPQ-LET-0868	Delay in Finishes Activities - Architectures and MEP Works	31-Aug-19	AQ5AQ6-SPQ-KER-GEN-LET-1033 ⁴⁰
AOQ-Exhibit C-120	AQ5AQ6-KER-SPQ-LET-0875	Notice of Delays Damages	10-Sep-19	AQ5AQ6-SPQ-KER-GEN-LET-1046 ⁴¹
AOQ-Exhibit C-121	AQ5AQ6-KER-SPQ-LET-0899	Notice of Delay Damages	25-Sep-19	AQ5AQ6-SPQ-KER-GEN-LET-1056 ⁴² AQ5AQ6-SPQ-KER-GEN-LET-1070 ⁴³
AOQ-Exhibit C-122	AQ5AQ6-KER-SPQ-LET-0922	Remaining Activities Completion Date	28-Oct-19	AQ5AQ6-SPQ-KER-GEN-LET-1168 ⁴⁴
AOQ-Exhibit C-123	AQ5AQ6-KER-SPQ-LET-0933	Remaining Activities Completion Date - Reminder	23-Nov-19	AQ5AQ6-SPQ-KER-GEN-LET-1168 ⁴⁵
AOQ-Exhibit C-124	AQ5AQ6-KER-SPQ-LET-0938	Project Completion	1-Dec-19	AQ5AQ6-SPQ-KER-GEN-LET-1075 ⁴⁶

- ³¹ Exhibit R-42 – Respondent's letter dated 13 March 2019 – ref: AQ5AQ6-SPQ-KER-GEN-LET-0951.
- ³² Exhibit R-43 – Respondent's letter dated 9 July 2020 – ref: AQ5AQ6-SPQ-KER-GEN-LET-1188.
- ³³ Exhibit R-40 – Respondent's letter dated 23 July 2019 – ref: AQ5AQ6-SPQ-KER-GEN-LET-1001.
- ³⁴ Exhibit R-40 – Respondent's letter dated 23 July 2019 – ref: AQ5AQ6-SPQ-KER-GEN-LET-1001.
- ³⁵ Exhibit R-40 – Respondent's letter dated 23 July 2019 – ref: AQ5AQ6-SPQ-KER-GEN-LET-1001.
- ³⁶ Exhibit R-41 – Respondent's letter dated 29 July 2019 – ref: AQ5AQ6-SPQ-KER-GEN-LET-1007.
- ³⁷ Exhibit R-40 – Respondent's letter dated 23 July 2019 – ref: AQ5AQ6-SPQ-KER-GEN-LET-1001.
- ³⁸ Exhibit R-41 – Respondent's letter dated 29 July 2019 – ref: AQ5AQ6-SPQ-KER-GEN-LET-1007.
- ³⁹ Exhibit R-44 – Respondent's letter dated 27 August 2019 – ref: AQ5AQ6-SPQ-KER-GEN-LET-1023.
- ⁴⁰ Exhibit R-45 – Respondent's letter dated 12 September 2019 – ref: AQ5AQ6-SPQ-KER-GEN-LET-1033.
- ⁴¹ Exhibit R-46 – Respondent's letter dated 17 September 2019 – ref: AQ5AQ6-SPQ-KER-GEN-LET-1046.
- ⁴² Exhibit R-47 – Respondent's letter dated 5 October 2019 – ref: AQ5AQ6-SPQ-KER-GEN-LET-1056.
- ⁴³ Exhibit R-48 – Respondent's letter dated 19 November 2019 – ref: AQ5AQ6-SPQ-KER-GEN-LET-1070.
- ⁴⁴ Exhibit R-49 – Respondent's letter dated 24 June 2020 – ref: AQ5AQ6-SPQ-KER-GEN-LET-1168.
- ⁴⁵ Exhibit R-49 – Respondent's letter dated 24 June 2020 – ref: AQ5AQ6-SPQ-KER-GEN-LET-1168.
- ⁴⁶ Exhibit R-50 – Respondent's letter dated 4 December 2019 – ref: AQ5AQ6-SPQ-KER-GEN-LET-1075.

AOQ-Exhibit C-125	AQ5AQ6-KER-SPQ-LET-0953	Project Completion	16-Jan-20	AQ5AQ6-SPQ-KER-GEN-LET-1097 ⁴⁷
AOQ-Exhibit C-126	AQ5AQ6-KER-SPQ-LET-0955	Remaining Activities Completion Date	22-Jan-20	AQ5AQ6-SPQ-KER-GEN-LET-1168 ⁴⁸
AOQ-Exhibit C-127	AQ5AQ6-KER-SPQ-LET-0964	Reminder - Remaining Activities Completion Date	27-Feb-20	AQ5AQ6-SPQ-KER-GEN-LET-1168 ⁴⁹
AOQ-Exhibit C-128	AQ5AQ6-KER-SPQ-LET-0966	ABRAJ QUARTIER - Notice for Delay Damages	3-Mar-20	AQ5AQ6-SPQ-KER-GEN-LET-1092 ⁵⁰
AOQ-Exhibit C-130	AQ5AQ6-KER-SPQ-LET-1005	Abraj Quartier - Notice of Delay Damages	3-May-20	AQ5AQ6-SPQ-KER-GEN-LET-1136 ⁵¹
AOQ-Exhibit C-131	AQ5AQ6-KER-SPQ-LET-1041	AQ6 Finishes Schedule	30-May-20	AQ5AQ6-SPQ-KER-GEN-LET-1150 ⁵²
AOQ-Exhibit C-132	AQ5AQ6-KER-SPQ-LET-1044	AQ6 Finishes Schedule - Reminder 1	2-Jun-20	AQ5AQ6-SPQ-KER-GEN-LET-1150 ⁵³
AOQ-Exhibit C-133	AQ5AQ6-KER-SPQ-LET-1058	AQ6 Finishes Schedule and Narrative - Reminder 2	9-Jun-20	AQ5AQ6-SPQ-KER-GEN-LET-1150 ⁵⁴
AOQ-Exhibit C-134	AQ5AQ6-KER-SPQ-LET-1059	AQ6 Finishes Schedule and Narrative	14-Jun-20	AQ5AQ6-SPQ-KER-GEN-LET-1178 ⁵⁵
AOQ-Exhibit C-135	AQ5AQ6-KER-SPQ-LET-1069	Balance Architectural Works Inside Apartments	27-Jun-20	AQ5AQ6-SPQ-KER-GEN-LET-1445 ⁵⁶
AOQ-Exhibit C-136	AQ5AQ6-KER-SPQ-LET-1086	SPQ Site Worker Reduction	2-Jul-20	AQ5AQ6-SPQ-KER-GEN-LET-1188 ⁵⁷
AOQ-Exhibit C-137	AQ5AQ6-KER-SPQ-LET-1134	Remaining Activities Completion Date	10-Aug-20	AQ5AQ6-SPQ-KER-GEN-LET-1229 ⁵⁸
AOQ-Exhibit C-138	AQ5AQ6-KER-SPQ-LET-1149	Additional Manpower	24-Aug-20	AQ5AQ6-SPQ-KER-GEN-LET-1335 ⁵⁹
AOQ-Exhibit C-139	AQ5AQ6-KER-SPQ-LET-1154	Progress and Project Close Out	1-Sep-20	
AOQ-Exhibit C-140	AQ5AQ6-KER-SPQ-LET-1171	Reminder-Delay in Finishes Activities - Architectures and MEP Works	10-Sep-20	AQ5AQ6-SPQ-KER-GEN-LET-1335 ⁶⁰
AOQ-Exhibit C-141	AQ5AQ6-KER-SPQ-LET-1181	Balanced Works to be rectified at Podium Basement Level	17-Sep-20	
AOQ-Exhibit C-142	AQ5AQ6-KER-SPQ-LET-1190	Outstanding-Delayed Activities and Deliverables in AQ5AQ6 Tower, Townhouses & Villas	30-Sep-20	AQ5AQ6-SPQ-KER-GEN-LET-1246 ⁶¹
				SPQ-ALORAIQ-011-2021-RK-0082 ⁶²
AOQ-Exhibit C-143	AQ5AQ6-KER-SPQ-LET-1191	Inaccurate Site Manpower Reporting and Lack of Performance Site	1-Oct-20	AQ5AQ6-SPQ-KER-GEN-LET-1243 ⁶³

- ⁴⁷ Exhibit R-51 – Respondent’s letter dated 19 March 2020 – ref: AQ5AQ6-SPQ-KER-GEN-LET-1097.
- ⁴⁸ Exhibit R-49 – Respondent’s letter dated 24 June 2020 – ref: AQ5AQ6-SPQ-KER-GEN-LET-1168.
- ⁴⁹ Exhibit R-49 – Respondent’s letter dated 24 June 2020 – ref: AQ5AQ6-SPQ-KER-GEN-LET-1168.
- ⁵⁰ Exhibit R-52 – Respondent’s letter dated 17 March 2020 – ref: AQ5AQ6-SPQ-KER-GEN-LET-1092.
- ⁵¹ Exhibit R-53 – Respondent’s letter dated 30 May 2020 – ref: AQ5AQ6-SPQ-KER-GEN-LET-1136.
- ⁵² Exhibit R-54 – Respondent’s letter dated 30 May 2020 – ref: AQ5AQ6-SPQ-KER-GEN-LET-1150.
- ⁵³ Exhibit R-54 – Respondent’s letter dated 30 May 2020 – ref: AQ5AQ6-SPQ-KER-GEN-LET-1150.
- ⁵⁴ Exhibit R-54 – Respondent’s letter dated 30 May 2020 – ref: AQ5AQ6-SPQ-KER-GEN-LET-1150.
- ⁵⁵ Exhibit R-55 – Respondent’s letter dated 4 July 2020 – ref: AQ5AQ6-SPQ-KER-GEN-LET-1178.
- ⁵⁶ Exhibit R-56 – Respondent’s letter dated 6 December 2021 – ref: AQ5AQ6-SPQ-KER-GEN-LET-1445.
- ⁵⁷ Exhibit R-57 – Respondent’s letter dated 9 July 2020 – ref: AQ5AQ6-SPQ-KER-GEN-LET-1188.
- ⁵⁸ Exhibit R-58 – Respondent’s letter dated 5 September 2020 – ref: AQ5AQ6-SPQ-KER-GEN-LET-1229.
- ⁵⁹ Exhibit R-59 – Respondent’s letter dated 10 March 2020 – ref: AQ5AQ6-SPQ-KER-GEN-LET-1335.
- ⁶⁰ Exhibit R-59 – Respondent’s letter dated 10 March 2020 – ref: AQ5AQ6-SPQ-KER-GEN-LET-1335.
- ⁶¹ Exhibit R-60 – Respondent’s letter dated 20 October 2020 – ref: AQ5AQ6-SPQ-KER-GEN-LET-1246.
- ⁶² Exhibit R-61 – Respondent’s letter dated 9 May 2021 – ref: SPQ-ALORAIQ-011-2021-RK-0082.
- ⁶³ Exhibit R-62 – Respondent’s letter dated 7 October 2020 – ref: AQ5AQ6-SPQ-KER-GEN-LET-1243.

AOQ-Exhibit C-144	AQ5AQ6-KER-SPQ-LET-1195	Balanced Works to be rectified at Standard Villa 21 (Snag Report)	10-Oct-20	AQ5AQ6-SPQ-KER-GEN-LET-1278 ⁶⁴
AOQ-Exhibit C-145	AQ5AQ6-KER-SPQ-LET-1196	Balanced Works to be rectified at Standard Villa 23 (Snag Report)	11-Oct-20	AQ5AQ6-SPQ-KER-GEN-LET-1279 ⁶⁵
AOQ-Exhibit C-146	AQ5AQ6-KER-SPQ-LET-1198	Balanced Works to be rectified at Standard Villa 18 (Snag Report)	12-Oct-20	AQ5AQ6-SPQ-KER-GEN-LET-1276 ⁶⁶
AOQ-Exhibit C-147	AQ5AQ6-KER-SPQ-LET-1199	Balanced Works to be rectified at Standard Villa 19 (Snag Report)	12-Oct-20	AQ5AQ6-SPQ-KER-GEN-LET-1341 ⁶⁷
AOQ-Exhibit C-148	AQ5AQ6-KER-SPQ-LET-1202	Balanced Works to be rectified at Standard Villa 20 (Snag Report)	12-Oct-20	AQ5AQ6-SPQ-KER-GEN-LET-1277 ⁶⁸
AOQ-Exhibit C-149	AQ5AQ6-KER-SPQ-LET-1204	Balanced Works to be rectified at Standard Villa 25 (Snag Report)	12-Oct-20	AQ5AQ6-SPQ-KER-GEN-LET-1280 ⁶⁹
AOQ-Exhibit C-150	AQ5AQ6-KER-SPQ-LET-1209	Balanced Works to be rectified at Townhouse 6 Level 4 (Snag Report)	25-Oct-20	AQ5AQ6-SPQ-KER-GEN-LET-1274 ⁷⁰
AOQ-Exhibit C-151	AQ5AQ6-KER-SPQ-LET-1211	ABRAJ QUARTIER - Project Delays	26-Oct-20	AQ5AQ6-SPQ-KER-GEN-LET-1237 ⁷¹
				AQ5AQ6-SPQ-KER-GEN-LET-1288 ⁷²
AOQ-Exhibit C-152	AQ5AQ6-KER-SPQ-LET-1255	VIP Villa - Contractor Performance - Progress Delay	22-Dec-20	AQ5AQ6-SPQ-KER-GEN-LET-1297 ⁷³
AOQ-Exhibit C-153	AQ5AQ6-KER-SPQ-LET-1261	- VIP Villa - Contractor Performance - Manpower-Resources Mobilization	30-Dec-20	AQ5AQ6-SPQ-KER-GEN-LET-1297 ⁷⁴
AOQ-Exhibit C-154	AQ5AQ6-KER-SPQ-LET-1304	Balanced Works to be rectified at Tower 5 Level 33 (Snag Report)	1-Feb-21	AQ5AQ6-SPQ-KER-GEN-LET-1339 ⁷⁵
AOQ-Exhibit C-155	AQ5AQ6-KER-SPQ-LET-1306	Balanced Works to be rectified at Tower 5 Level 34 & Level 35 (Snag Report)	3-Feb-21	AQ5AQ6-SPQ-KER-GEN-LET-1339 ⁷⁶
AOQ-Exhibit C-156	AQ5AQ6-KER-SPQ-LET-1309	Balanced Works to be rectified at Tower 5 Level 36 & Level 37 (Snag Report)	6-Feb-21	AQ5AQ6-SPQ-KER-GEN-LET-1339 ⁷⁷
AOQ-Exhibit C-157	AQ5AQ6-KER-SPQ-LET-1311	Balanced Works to be rectified at Tower 5 Level 38 (Snag Report)	8-Feb-21	AQ5AQ6-SPQ-KER-GEN-LET-1339 ⁷⁸
AOQ-Exhibit C-158	AQ5AQ6-KER-SPQ-LET-1315	Contractor Performance - Progress Finishes Delay	10 Feb-21	AQ5AQ6-SPQ-KER-GEN-LET-1335 ⁷⁹

- ⁶⁴ Exhibit R-63 – Respondent’s letter dated 28 October 2020 – ref: AQ5AQ6-SPQ-KER-GEN-LET-1278.
- ⁶⁵ Exhibit R-64 – Respondent’s letter dated 28 October 2020 – ref: AQ5AQ6-SPQ-KER-GEN-LET-1279.
- ⁶⁶ Exhibit R-65 – Respondent’s letter dated 28 October 2020 – ref: AQ5AQ6-SPQ-KER-GEN-LET-1276.
- ⁶⁷ Exhibit R-66 – Respondent’s letter dated 19 April 2021 – ref: AQ5AQ6-SPQ-KER-GEN-LET-1341.
- ⁶⁸ Exhibit R-67 – Respondent’s letter dated 28 October 2020 – ref: AQ5AQ6-SPQ-KER-GEN-LET-1277.
- ⁶⁹ Exhibit R-68 – Respondent’s letter dated 28 October 2020 – ref: AQ5AQ6-SPQ-KER-GEN-LET-1280.
- ⁷⁰ Exhibit R-69 – Respondent’s letter dated 28 October 2020 – ref: AQ5AQ6-SPQ-KER-GEN-LET-1274.
- ⁷¹ Exhibit R-70 – Respondent’s letter dated 20 September 2020 – ref: AQ5AQ6-SPQ-KER-GEN-LET-1237.
- ⁷² Exhibit R-71 – Respondent’s letter dated 21 December 2020 – ref: AQ5AQ6-SPQ-KER-GEN-LET-1288.
- ⁷³ Exhibit R-72 – Respondent’s letter dated 31 December 2020 – ref: AQ5AQ6-SPQ-KER-GEN-LET-1297.
- ⁷⁴ Exhibit R-72 – Respondent’s letter dated 31 December 2020 – ref: AQ5AQ6-SPQ-KER-GEN-LET-1297.
- ⁷⁵ Exhibit R-73 – Respondent’s letter dated 19 April 2020 – ref: AQ5AQ6-SPQ-KER-GEN-LET-1339.
- ⁷⁶ Exhibit R-73 – Respondent’s letter dated 19 April 2020 – ref: AQ5AQ6-SPQ-KER-GEN-LET-1339.
- ⁷⁷ Exhibit R-73 – Respondent’s letter dated 19 April 2020 – ref: AQ5AQ6-SPQ-KER-GEN-LET-1339.
- ⁷⁸ Exhibit R-73 – Respondent’s letter dated 19 April 2020 – ref: AQ5AQ6-SPQ-KER-GEN-LET-1339.
- ⁷⁹ Exhibit R-74 – Respondent’s letter dated 10 March 2021 – ref: AQ5AQ6-SPQ-KER-GEN-LET-1335.

AOQ-Exhibit C-159	AQ5AQ6-KER-SPQ-LET-1322	Balanced Works to be rectified at Tower 5 Level 1st and 2nd Mechanical Room (Snag Report)	17-Feb-21	AQ5AQ6-SPQ-KER-GEN-LET-1416 ⁸⁰
AOQ-Exhibit C-160	AQ5AQ6-KER-SPQ-LET-1326	Balanced Works to be rectified at Tower 5 Level 39, 40, 41 and 42 - Mechanical Room (Snag Report)	21-Feb-21	AQ5AQ6-SPQ-KER-GEN-LET-1416 ⁸¹
AOQ-Exhibit C-161	AQ5AQ6-KER-SPQ-LET-1327	Balanced Works to be rectified at Tower 5 BSM - Mechanical Rooms (Snag Report)	22-Feb-21	AQ5AQ6-SPQ-KER-GEN-LET-1416 ⁸²
AOQ-Exhibit C-162	AQ5AQ6-KER-SPQ-LET-1330	Reminder - Contractor Performance - Progress Finishes Delay	24-Feb-21	AQ5AQ6-SPQ-KER-GEN-LET-1335 ⁸³
AOQ-Exhibit C-163	AQ5AQ6-KER-SPQ-LET-1333	Balanced Works to be rectified at Tower 06 1st & 2nd Level - Mechanical Room (Snag Report)	27-Feb-21	AQ5AQ6-SPQ-KER-GEN-LET-1416 ⁸⁴
AOQ-Exhibit C-164	AQ5AQ6-KER-SPQ-LET-1334	Reminder - Contractor Performance - Progress Finishes Delay	1-Mar-21	AQ5AQ6-SPQ-KER-GEN-LET-1335 ⁸⁵
AOQ-Exhibit C-165	AQ5AQ6-KER-SPQ-LET-1337	Balanced Works to be rectified at Tower 6 Level 40 & 41 (Snag Report)	9-Mar-21	AQ5AQ6-SPQ-KER-GEN-LET-1416 ⁸⁶
AOQ-Exhibit C-166	AQ5AQ6-KER-SPQ-LET-1338	Balanced Works to be rectified at Tower 6 Level 39 - Mechanical Room (Snag Report)	9-Mar-21	AQ5AQ6-SPQ-KER-GEN-LET-1416 ⁸⁷
AOQ-Exhibit C-167	AQ5AQ6-KER-SPQ-LET-1339	Balanced Works to be rectified at Podium - BSM (Snag Report)	9-Mar-21	
AOQ-Exhibit C-168	AQ5AQ6-KER-SPQ-LET-1341	Balanced Works to be rectified at BSM - Mechanical Room (Snag Report)	9-Mar-21	AQ5AQ6-SPQ-KER-GEN-LET-1416 ⁸⁸
AOQ-Exhibit C-169	AQ5AQ6-KER-SPQ-LET-1347	Balanced Works to be rectified at Townhouse 05 - 402 & 411 (Snag Report)	21-Mar-21	AQ5AQ6-SPQ-KER-GEN-LET-1340 ⁸⁹
AOQ-Exhibit C-170	AQ5AQ6-KER-SPQ-LET-1348	Balanced Works to be rectified at Townhouse 5 - 303 (Snag Report)	22-Mar-21	AQ5AQ6-SPQ-KER-GEN-LET-1340 ⁹⁰
AOQ-Exhibit C-171	AQ5AQ6-KER-SPQ-LET-1349	Balanced Works to be rectified at Townhouse 05 - 301 & 304 (Snag Report)	23-Mar-21	AQ5AQ6-SPQ-KER-GEN-LET-1340 ⁹¹
AOQ-Exhibit C-172	AQ5AQ6-KER-SPQ-LET-1350	Balanced Works to be rectified at Townhouse 05 - 401 (Snag Report)	23-Mar-21	AQ5AQ6-SPQ-KER-GEN-LET-1340 ⁹²

- ⁸⁰ Exhibit R-75 – Respondent’s letter dated 19 September 2021 – ref: AQ5AQ6-SPQ-KER-GEN-LET-1416.
- ⁸¹ Exhibit R-75 – Respondent’s letter dated 19 September 2021 – ref: AQ5AQ6-SPQ-KER-GEN-LET-1416.
- ⁸² Exhibit R-75 – Respondent’s letter dated 19 September 2021 – ref: AQ5AQ6-SPQ-KER-GEN-LET-1416.
- ⁸³ Exhibit R-74 – Respondent’s letter dated 10 March 2021 – ref: AQ5AQ6-SPQ-KER-GEN-LET-1335.
- ⁸⁴ Exhibit R-75 – Respondent’s letter dated 19 September 2021 – ref: AQ5AQ6-SPQ-KER-GEN-LET-1416.
- ⁸⁵ Exhibit R-74 – Respondent’s letter dated 10 March 2021 – ref: AQ5AQ6-SPQ-KER-GEN-LET-1335.
- ⁸⁶ Exhibit R-75 – Respondent’s letter dated 19 September 2021 – ref: AQ5AQ6-SPQ-KER-GEN-LET-1416.
- ⁸⁷ Exhibit R-75 – Respondent’s letter dated 19 September 2021 – ref: AQ5AQ6-SPQ-KER-GEN-LET-1416.
- ⁸⁸ Exhibit R-75 – Respondent’s letter dated 19 September 2021 – ref: AQ5AQ6-SPQ-KER-GEN-LET-1416.
- ⁸⁹ Exhibit R-76 – Respondent’s letter dated 19 April 2021 – ref: AQ5AQ6-SPQ-KER-GEN-LET-1340.
- ⁹⁰ Exhibit R-76 – Respondent’s letter dated 19 April 2021 – ref: AQ5AQ6-SPQ-KER-GEN-LET-1340.
- ⁹¹ Exhibit R-76 – Respondent’s letter dated 19 April 2021 – ref: AQ5AQ6-SPQ-KER-GEN-LET-1340.
- ⁹² Exhibit R-76 – Respondent’s letter dated 19 April 2021 – ref: AQ5AQ6-SPQ-KER-GEN-LET-1340.

AOQ-Exhibit C-173	AQ5AQ6-KER-SPQ-LET-1351	Balanced Works to be rectified at Townhouse 05 – 601 (Snag Report)	23-Mar-21	AQ5AQ6-SPQ-KER-GEN-LET-1340 ⁹³
AOQ-Exhibit C-174	AQ5AQ6-KER-SPQ-LET-1352	Sudden Absence of Labour	23-Mar-21	AQ5AQ6-SPQ-KER-GEN-LET-1418 ⁹⁴
AOQ-Exhibit C-175	AQ5AQ6-KER-SPQ-LET-1353	Sudden Absence of Labour - Reminder 1	25-Mar-21	AQ5AQ6-SPQ-KER-GEN-LET-1418 ⁹⁵
AOQ-Exhibit C-176	AQ5AQ6-KER-SPQ-LET-1354	Balanced Works to be rectified at Townhouse 05 – 602 (Snag Report)	28-Mar-21	AQ5AQ6-SPQ-KER-GEN-LET-1340 ⁹⁶
AOQ-Exhibit C-177	AQ5AQ6-KER-SPQ-LET-1356	Reminder - Contractor Performance - Progress Finishes Delay	31-Mar-21	AQ5AQ6-SPQ-KER-GEN-LET-1357 ⁹⁷
AOQ-Exhibit C-178	AQ5AQ6-KER-SPQ-LET-1357	Balanced Works to be rectified at Townhouse 05 – Apartment 403 & 404 (Snag Report)	5-Apr-21	AQ5AQ6-SPQ-KER-GEN-LET-1340 ⁹⁸
AOQ-Exhibit C-179	AQ5AQ6-KER-SPQ-LET-1358	Balanced Works to be rectified at Townhouse 05 – Apartment 405 & 408 (Snag Report)	6-Apr-21	AQ5AQ6-SPQ-KER-GEN-LET-1340 ⁹⁹
AOQ-Exhibit C-180	AQ5AQ6-KER-SPQ-LET-1364	Balanced Works to be rectified at Townhouse 05 – Apartment 410 & 412 (Snag Report)	22-Apr-21	AQ5AQ6-SPQ-KER-GEN-LET-1347 ¹⁰⁰
AOQ-Exhibit C-181	AQ5AQ6-KER-SPQ-LET-1367	Balanced Work to be rectified at Tower 05 Level 20 to 38 (Snag Report)-	26-Apr-21	AQ5AQ6-SPQ-KER-GEN-LET-1348 ¹⁰¹
AOQ-Exhibit C-182	AQ5AQ6-KER-SPQ-LET-1368	Balanced Works to be rectified at Townhouse 05 – Apartment 406 & 407 (Snag Report)	26-Apr-21	AQ5AQ6-SPQ-KER-GEN-LET-1347 ¹⁰²
AOQ-Exhibit C-183	AQ5AQ6-KER-SPQ-LET-1370	Balanced Works to be rectified at Townhouse 05 – Apartment 409 (Snag Report)	29-Apr-21	AQ5AQ6-SPQ-KER-GEN-LET-1347 ¹⁰³
AOQ-Exhibit C-184	AQ5AQ6-KER-SPQ-LET-1381	Balanced Works to be rectified at Townhouse 05 & 06 – Mechanical Rooms (Snag Report)	26-May-21	AQ5AQ6-SPQ-KER-GEN-LET-1416 ¹⁰⁴
AOQ-Exhibit C-185	AQ5AQ6-KER-SPQ-LET-1382	Balanced Works to be rectified at Tower 05 - BSM Mechanical Rooms (Snag Report)	26-May-21	AQ5AQ6-SPQ-KER-GEN-LET-1416 ¹⁰⁵
AOQ-Exhibit C-186	AQ5AQ6-KER-SPQ-LET-1379	Progress Finishes Delay	27-May-21	AQ5AQ6-SPQ-KER-GEN-LET-1372 ¹⁰⁶
AOQ-Exhibit C-187	AQ5AQ6-KER-SPQ-LET-1380	Contractor Performance - Progress Finishes Delay	27-May-21	AQ5AQ6-SPQ-KER-GEN-LET-1419 ¹⁰⁷

- ⁹³ Exhibit R-76 – Respondent’s letter dated 19 April 2021 – ref: AQ5AQ6-SPQ-KER-GEN-LET-1340.
- ⁹⁴ Exhibit R-77 – Respondent’s letter dated 23 September 2021 – ref: AQ5AQ6-SPQ-KER-GEN-LET-1418.
- ⁹⁵ Exhibit R-77 – Respondent’s letter dated 23 September 2021 – ref: AQ5AQ6-SPQ-KER-GEN-LET-1418.
- ⁹⁶ Exhibit R-76 – Respondent’s letter dated 19 April 2021 – ref: AQ5AQ6-SPQ-KER-GEN-LET-1340.
- ⁹⁷ Exhibit R-78 – Respondent’s letter dated 17 May 2021 – ref: AQ5AQ6-SPQ-KER-GEN-LET-1357.
- ⁹⁸ Exhibit R-76 – Respondent’s letter dated 19 April 2021 – ref: AQ5AQ6-SPQ-KER-GEN-LET-1340.
- ⁹⁹ Exhibit R-76 – Respondent’s letter dated 19 April 2021 – ref: AQ5AQ6-SPQ-KER-GEN-LET-1340.
- ¹⁰⁰ Exhibit R-79 – Respondent’s letter dated 9 May 2021 – ref: AQ5AQ6-SPQ-KER-GEN-LET-1347.
- ¹⁰¹ Exhibit R-80 – Respondent’s letter dated 9 May 2021 – ref: AQ5AQ6-SPQ-KER-GEN-LET-1348.
- ¹⁰² Exhibit R-79 – Respondent’s letter dated 9 May 2021 – ref: AQ5AQ6-SPQ-KER-GEN-LET-1347.
- ¹⁰³ Exhibit R-79 – Respondent’s letter dated 9 May 2021 – ref: AQ5AQ6-SPQ-KER-GEN-LET-1347.
- ¹⁰⁴ Exhibit R-75 – Respondent’s letter dated 19 September 2021 – ref: AQ5AQ6-SPQ-KER-GEN-LET-1416.
- ¹⁰⁵ Exhibit R-75 – Respondent’s letter dated 19 September 2021 – ref: AQ5AQ6-SPQ-KER-GEN-LET-1416.
- ¹⁰⁶ Exhibit R-81 – Respondent’s letter dated 21 June 2021 – ref: AQ5AQ6-SPQ-KER-GEN-LET-1372.
- ¹⁰⁷ Exhibit R-82 – Respondent’s letter dated 23 September 2021 – ref: AQ5AQ6-SPQ-KER-GEN-LET-1419.

AOQ-Exhibit C-188	AQ5AQ6-KER-SPQ-LET-1385	Balanced Works to be rectified at Tower 05 & 06 – Podium Level 02 MEP Rooms (Snag Report)	31-May-21	AQ5AQ6-SPQ-KER-GEN-LET-1416 ¹⁰⁸
AOQ-Exhibit C-189	AQ5AQ6-KER-SPQ-LET-1392	Balanced Works to be rectified at Tower 05 & 06 Podium Ground Floor – Mechanical Rooms (Snag Report)	9-Jun- 21	AQ5AQ6-SPQ-KER-GEN-LET-1416 ¹⁰⁹
AOQ-Exhibit C-190	AQ5AQ6-KER-SPQ-LET-1399	Façade Lighting Pending Works	22-Jun-21	AQ5AQ6-SPQ-KER-GEN-LET-1393 ¹¹⁰
AOQ-Exhibit C-64	AQ5AQ6-KER-SPQ-LET-1404	Condensation due to Ambient Air Passing Through above Ceiling Gaps	12-Jul-21	AQ5AQ6-SPQ-KER-GEN-LET-1392 ¹¹¹
AOQ-Exhibit C-191	AQ5AQ6-KER-SPQ-LET-1407	Pending Softscape Works at TH5, TH6 and S.V	14-Jul-21	AQ5AQ6-SPQ-KER-GEN-LET-1453 ¹¹²
AOQ-Exhibit C-65	AQ5AQ6-KER-SPQ-LET-1414	Condensation/False Ceiling Damage due to Ambient Air Passing Through Gaps	18-Jul-21	AQ5AQ6-SPQ-KER-GEN-LET-1392 ¹¹³
AOQ-Exhibit C-66	AQ5AQ6-KER-SPQ-LET-1418	Condensation/False Ceiling Damage due to Ambient Air Passing Through Gaps	27-Jul-21	AQ5AQ6-SPQ-KER-GEN-LET-1392 ¹¹⁴
AOQ-Exhibit C-192	AQ5AQ6-KER-SPQ-LET-1424	Continuous Sudden Absence of Labors	5-Aug-21	AQ5AQ6-SPQ-KER-GEN-LET-1382 ¹¹⁵
AOQ-Exhibit C-193	AQ5AQ6-KER-SPQ-LET-1425	Continuous Sudden Absence of Labors	5-Aug-21	AQ5AQ6-SPQ-KER-GEN-LET-1382 ¹¹⁶
AOQ-Exhibit C-194	AQ5AQ6-KER-SPQ-LET-1426	Continuous Sudden Absence of Labors	7-Aug-21	AQ5AQ6-SPQ-KER-GEN-LET-1382 ¹¹⁷
AOQ-Exhibit C-67	AQ5AQ6-KER-SPQ-LET-1430	Condensation/False Ceiling Damage due to Ambient Air Passing Through Gaps	10-Aug-21	AQ5AQ6-SPQ-KER-GEN-LET-1427 ¹¹⁸
AOQ-Exhibit C-195	AQ5AQ6-KER-SPQ-LET-1447	Notice for Rectification – Hot Tub Mosaic Tile at SPA – AQ6	7-Sep-21	AQ5AQ6-SPQ-KER-GEN-LET-1415 ¹¹⁹
AOQ-Exhibit C-196	AQ5AQ6-KER-SPQ-LET-1450	AQ5 TH5 Garbage Chute System – Outstanding Works for ENVAC Requirement	14-Sep-21	AQ5AQ6-SPQ-KER-GEN-LET-1425 ¹²⁰
AOQ-Exhibit C-197	AQ5AQ6-KER-SPQ-LET-1451	BMS Outstanding Works & Delay	15-Sep-21	AQ5AQ6-SPQ-KER-GEN-LET-1424 ¹²¹
AOQ-Exhibit C-198	AQ5AQ6-KER-SPQ-LET-1453	BMS Outstanding Works & Delay	3-Oct-21	AQ5AQ6-SPQ-KER-GEN-LET-1424 ¹²²
AOQ-Exhibit C-199	AQ5AQ6-KER-SPQ-LET-1456	Contractor Performance – Progress Finishes delay	5-Oct-21	

- ¹⁰⁸ Exhibit R-75 – Respondent’s letter dated 19 September 2021 – ref: AQ5AQ6-SPQ-KER-GEN-LET-1416.
- ¹⁰⁹ Exhibit R-75 – Respondent’s letter dated 19 September 2021 – ref: AQ5AQ6-SPQ-KER-GEN-LET-1416.
- ¹¹⁰ Exhibit R-83 – Respondent’s letter dated 29 July 2021 – ref: AQ5AQ6-SPQ-KER-GEN-LET-1393.
- ¹¹¹ Exhibit R-84 – Respondent’s letter dated 11 August 2021 – ref: AQ5AQ6-SPQ-KER-GEN-LET-1392.
- ¹¹² Exhibit R-85 – Respondent’s letter dated 30 January 2022 – ref: AQ5AQ6-SPQ-KER-GEN-LET-1453.
- ¹¹³ Exhibit R-84 – Respondent’s letter dated 11 August 2021 – ref: AQ5AQ6-SPQ-KER-GEN-LET-1392.
- ¹¹⁴ Exhibit R-84 – Respondent’s letter dated 11 August 2021 – ref: AQ5AQ6-SPQ-KER-GEN-LET-1392.
- ¹¹⁵ Exhibit R-86 – Respondent’s letter dated 9 August 2021 – ref: AQ5AQ6-SPQ-KER-GEN-LET-1382.
- ¹¹⁶ Exhibit R-86 – Respondent’s letter dated 9 August 2021 – ref: AQ5AQ6-SPQ-KER-GEN-LET-1382.
- ¹¹⁷ Exhibit R-86 – Respondent’s letter dated 9 August 2021 – ref: AQ5AQ6-SPQ-KER-GEN-LET-1382.
- ¹¹⁸ Exhibit R-87 – Respondent’s letter dated 19 October 2021 – ref: AQ5AQ6-SPQ-KER-GEN-LET-1427.
- ¹¹⁹ Exhibit R-88 – Respondent’s letter dated 15 September 2021 – ref: AQ5AQ6-SPQ-KER-GEN-LET-1415.
- ¹²⁰ Exhibit R-89 – Respondent’s letter dated 19 October 2021 – ref: AQ5AQ6-SPQ-KER-GEN-LET-1425.
- ¹²¹ Exhibit R-90 – Respondent’s letter dated 19 October 2021 – ref: AQ5AQ6-SPQ-KER-GEN-LET-1424.
- ¹²² Exhibit R-90 – Respondent’s letter dated 19 October 2021 – ref: AQ5AQ6-SPQ-KER-GEN-LET-1424.

AOQ-Exhibit C-200	AQ5AQ6-KER-SPQ-LET-1460	Grease/Oil Installations Testing & Commissioning Delay	11-Oct-21	AQ3AQ4-SPQ-KER-GEN-LET-1203 ¹²³ AQ5AQ6-SPQ-KER-GEN-LET-1434 ¹²⁴ AQ5AQ6-SPQ-KER-GEN-LET-1462 ¹²⁵
AOQ-Exhibit C-201	AQ5AQ6-KER-SPQ-LET-1461	Façade Lighting Pending Works – Reminder No. 1	11-Oct-21	AQ5AQ6-SPQ-KER-GEN-LET-1426 ¹²⁶ AQ5AQ6-SPQ-KER-GEN-LET-1455 ¹²⁷
AOQ-Exhibit C-202	AQ5AQ6-KER-SPQ-LET-1463	AQ5 TH5 Garbage Chute System – Outstanding Works for ENVAC Requirement	14-Oct-21	AQ5AQ6-SPQ-KER-GEN-LET-1425 ¹²⁸
AOQ-Exhibit C-203	AQ5AQ6-KER-SPQ-LET-1464	BMS Outstanding Works & Delay	14-Oct-21	AQ5AQ6-SPQ-KER-GEN-LET-1424 ¹²⁹ AQ5AQ6-SPQ-KER-GEN-LET-1438 ¹³⁰
AOQ-Exhibit C-204	AQ5AQ6-KER-SPQ-LET-1469	Façade Lighting Pending Works	20-Oct-21	AQ5AQ6-SPQ-KER-GEN-LET-1455 ¹³¹
AOQ-Exhibit C-205	AQ5AQ6-KER-SPQ-LET-1470	Outstanding Aluminum Air Infiltration & Water Penetration Tests	31-Oct-21	AQ5AQ6-SPQ-KER-GEN-LET-1444 ¹³²
AOQ-Exhibit C-206	AQ5AQ6-KER-SPQ-LET-1474	BMS System Compensation	10-Nov-21	AQ5AQ6-SPQ-KER-GEN-LET-1435 ¹³³ AQ5AQ6-SPQ-KER-GEN-LET-1438 ¹³⁴
AOQ-Exhibit C-207	AQ5AQ6-KER-SPQ-LET-1478	Notice for Rectification-Water Leakage at Unit 203 AQ6	15-Nov-21	AQ5AQ6-SPQ-KER-GEN-LET-1442 ¹³⁵ AQ5AQ6-SPQ-KER-GEN-LET-1452 ¹³⁶
AOQ-Exhibit C-208	AQ5AQ6-KER-SPQ-LET-1485	Ongoing Defectives	30-Nov-21	AQ5AQ6-SPQ-KER-GEN-LET-1448 ¹³⁷
AOQ-Exhibit C-209	AQ5AQ6-KER-SPQ-LET-1486	Pending Incomplete Works	30-Nov-21	AQ5AQ6-SPQ-KER-GEN-LET-1456 ¹³⁸
AOQ-Exhibit C-67	AQ5AQ6-KER-SPQ-LET-1430	Condensation/False Ceiling Damage due to Ambient Air Passing Through Gaps	10-Aug-21	AQ5AQ6-SPQ-KER-GEN-LET-1427 ¹³⁹
AOQ-Exhibit C-36	AQ5AQ6-KER-SPQ-LET-1487	Notice for Rectification-Back-Props at Basement Level-AQ6	7-Dec-21	
AOQ-Exhibit C-210	AQ5AQ6-KER-SPQ-LET-1488	Notice for Rectification-Water Leakage in L02-Near TH6	7-Dec-21	AQ5AQ6-SPQ-KER-GEN-LET-1447 ¹⁴⁰
AOQ-Exhibit C-211	AQ5AQ6-KER-SPQ-LET-1489	Firefighting system-Defect notification on persisting water leakage & pressure issues with Villas network	7-Dec-21	

- ¹²³ Exhibit R-91 – Respondent’s letter dated 13 September 2021 – ref: AQ3AQ4-SPQ-KER-GEN-LET-1203.
- ¹²⁴ Exhibit R-92 – Respondent’s letter dated 9 November 2021 – ref: AQ5AQ6-SPQ-KER-GEN-LET-1434.
- ¹²⁵ Exhibit R-93 – Respondent’s letter dated 13 April 2022 – ref: AQ5AQ6-SPQ-KER-GEN-LET-1462.
- ¹²⁶ Exhibit R-94 – Respondent’s letter dated 19 October 2021 – ref: AQ5AQ6-SPQ-KER-GEN-LET-1426.
- ¹²⁷ Exhibit R-95 – Respondent’s letter dated 30 January 2022 – ref: AQ5AQ6-SPQ-KER-GEN-LET-1455.
- ¹²⁸ Exhibit R-89 – Respondent’s letter dated 19 October 2021 – ref: AQ5AQ6-SPQ-KER-GEN-LET-1425.
- ¹²⁹ Exhibit R-90 – Respondent’s letter dated 19 October 2021 – ref: AQ5AQ6-SPQ-KER-GEN-LET-1424.
- ¹³⁰ Exhibit R-96 – Respondent’s letter dated 14 November 2021 – ref: AQ5AQ6-SPQ-KER-GEN-LET-1438.
- ¹³¹ Exhibit R-95 – Respondent’s letter dated 30 January 2022 – ref: AQ5AQ6-SPQ-KER-GEN-LET-1455.
- ¹³² Exhibit R-97 – Respondent’s letter dated 1 December 2021 – ref: AQ5AQ6-SPQ-KER-GEN-LET-1444.
- ¹³³ Exhibit R-98 – Respondent’s letter dated 11 November 2021 – ref: AQ5AQ6-SPQ-KER-GEN-LET-1435.
- ¹³⁴ Exhibit R-96 – Respondent’s letter dated 14 November 2021 – ref: AQ5AQ6-SPQ-KER-GEN-LET-1438.
- ¹³⁵ Exhibit R-99 – Respondent’s letter dated 30 November 2021 – ref: AQ5AQ6-SPQ-KER-GEN-LET-1442.
- ¹³⁶ Exhibit R-100 – Respondent’s letter dated 15 January 2022 – ref: AQ5AQ6-SPQ-KER-GEN-LET-1452.
- ¹³⁷ Exhibit R-101 – Respondent’s letter dated 11 December 2021 – ref: AQ5AQ6-SPQ-KER-GEN-LET-1448.
- ¹³⁸ Exhibit R-102 – Respondent’s letter dated 1 February 2022 – ref: AQ5AQ6-SPQ-KER-GEN-LET-1456.
- ¹³⁹ Exhibit R-103 – Respondent’s letter dated 19 October 2021 – ref: AQ5AQ6-SPQ-KER-GEN-LET-1427.
- ¹⁴⁰ Exhibit R-104 – Respondent’s letter dated 8 December 2021 – ref: AQ5AQ6-SPQ-KER-GEN-LET-1447.

AOQ-Exhibit C-212	AQ5AQ6-KER-SPQ-LET-1490	Notice for Rectification-Retaining Wall Water Leakage at AQ5AQ6 Basement	13-Dec-21	
AOQ-Exhibit C-68	AQ5AQ6-KER-SPQ-LET-1492	AC Condensation in Apartments at AQ5AQ6	16-Dec-21	
AOQ-Exhibit C-213	AQ5AQ6-KER-SPQ-LET-1494	Outstanding Insulation works Central Electric Water Heater Room at SPA Gym	27-Dec-21	AQ5AQ6-SPQ-KER-GEN-LET-1465 ¹⁴¹
AOQ-Exhibit C-214	AQ5AQ6-KER-SPQ-LET-1495	Notice for Rectification-Water Leakage from the Double Height Ceiling at the Reception Area at AQ5	11-Jan-22	AQ5AQ6-SPQ-KER-GEN-LET-1451 ¹⁴²
AOQ-Exhibit C-215	AQ5AQ6-KER-SPQ-LET-1496	Notice for Rectification-Back-Props at Basement Level-AQ6 Reminder No. 01	23-Jan-22	
AOQ-Exhibit C-216	AQ5AQ6-KER-SPQ-LET-1497	Notice for Rectification-Precast Protective Coat Application	29-Jan-22	
AOQ-Exhibit C-217	AQ5AQ6-KER-SPQ-LET-1498	Pending Incomplete Works: Reminder No. 1	29-Jan-22	AQ5AQ6-SPQ-KER-GEN-LET-1456 ¹⁴³
AOQ-Exhibit C-218	AQ5AQ6-KER-SPQ-LET-1499	Temp. Water meter connections – Disconnection & Removal	12-Feb-22	AQ5AQ6-SPQ-KER-GEN-LET-1461 ¹⁴⁴
AOQ-Exhibit C-219	AQ5AQ6-KER-SPQ-LET-1500	Notice for rectification-Water seepage from Bathtub drainage sleeve of above flat 1409- AQ6	17-Feb-22	AQ5AQ6-SPQ-KER-GEN-LET-1459 ¹⁴⁵
AOQ-Exhibit C-220	AQ5AQ6-KER-SPQ-LET-1503	Temp. Water meter connections – Disconnection & Removal: Reminder No. 1	13-Mar-22	AQ5AQ6-SPQ-KER-GEN-LET-1461 ¹⁴⁶
AOQ-Exhibit C-221	AQ5AQ6-KER-SPQ-LET-1507	Balanced Works to be rectified at Tower AQ6 – Toilet Ground Floor (Snag Report)	14-May-22	
AOQ-Exhibit C-222	AQ5AQ6-KER-SPQ-LET-1519	Filter damaged by Crack and water leak in Town House 5&6 domestic pump room - Defect Notification	4-Jul-22	
AOQ-Exhibit C-223	AQ5AQ6-KER-SPQ-LET-1520	Notice of Rectification - Water Leakage at the Wall of TH6 Lift Lobby Basement Level	6-Jul-22	
AOQ-Exhibit C-224	AQ5AQ6-KER-SPQ-LET-1521	Notice of Rectification - Water Leakages inside the Utility Room at Basement Near AQ6	6-Jul-22	AQ5AQ6-SPQ-KER-GEN-LET-1473 ¹⁴⁷
AOQ-Exhibit C-225	AQ5AQ6-KER-SPQ-LET-1522	Notice for Rectification – Elevators Lift bit Components - AQ5AQ6	6-Jul-22	
AOQ-Exhibit C-226	AQ5AQ6-KER-SPQ-LET-1524	Notice for Rectification – Elevator Lift Pit Components – AQ5AQ6	7-Aug-22	AQ5AQ6-SPQ-KER-GEN-LET-1474 ¹⁴⁸

¹⁴¹ Exhibit R-105 – Respondent’s letter dated 24 May 2022 – ref: AQ5AQ6-SPQ-KER-GEN-LET-1465.

¹⁴² Exhibit R-106 – Respondent’s letter dated 11 January 2022 – ref: AQ5AQ6-SPQ-KER-GEN-LET-1451.

¹⁴³ Exhibit R-107 – Respondent’s letter dated 1 February 2022 – ref: AQ5AQ6-SPQ-KER-GEN-LET-1456.

¹⁴⁴ Exhibit R-108 – Respondent’s letter dated 5 April 2022 – ref: AQ5AQ6-SPQ-KER-GEN-LET-1461.

¹⁴⁵ Exhibit R-109 – Respondent’s letter dated 20 February 2022 – ref: AQ5AQ6-SPQ-KER-GEN-LET-1459.

¹⁴⁶ Exhibit R-110 – Respondent’s letter dated 5 April 2022 – ref: AQ5AQ6-SPQ-KER-GEN-LET-1461.

¹⁴⁷ Exhibit R-110 – Respondent’s letter dated 7 August 2022 – ref: AQ5AQ6-SPQ-KER-GEN-LET-1473.

¹⁴⁸ Exhibit R-111 – Respondent’s letter dated 7 August 2022 – ref: AQ5AQ6-SPQ-KER-GEN-LET-1474.

- 56 Once regard is had to the Respondent's replies to the Engineer, it is evident that the manner in which the Claimant has sought to rely on the Engineer's correspondence without providing the context and the Respondent's replies, is misleading. By not giving the context to those letters and failing to disclose the responses given in each instance, a skewed picture is presented.
- 57 By way of example:
- 57.1 The first letter referred to in the Schedule is dated 13 January 2019 and the subject is identified as "Project Handing Over". However, if one has regard to the Respondents reply to that letter it becomes apparent that the Respondent pointed out to the Engineer that the criticisms were unfair given that the Engineer had failed and refused to determine any of the extension of time claims, that the Respondent had nonetheless and in accordance with the Claimant's requests provided additional resources and accelerated its works and also provided updated expected handover dates;
- 57.2 At paragraph 6.21 the Claimant refers to the Engineer's letter dated 22 June 2019 which in the Appendix is described as relating contractor performance and non-compliance causing project delays. The Claimant refers to a paragraph in the letter where the Engineer suggests that the Respondent had not delivered or provided a revised program, making it impossible to assess claims.
- 57.3 However, in its reply, the Respondent pointed out that a revised program had in fact been provided, that the extension of time claims had not been adjudicated and that the Engineer rejected the revised program without proper reasoning.
- 57.4 In this regard, the Respondent stated in its letter *"the revised schedule for completion was submitted for your review through letter AQ5AQ6-SPQ-KER-GEN-LET-0992 dated 2 July 2019 but was rejected without any analysis or valid reasons in letter AQ5AQ6-KER-SQP-LET-0843 dated 17*

July 2019. This only shows that the Engineer has not followed the protocol per Clause 3.5 of the Conditions of Contract and is trying to put undue blame on the Contractor.... The Engineer is requested to evaluate the program in a proper manner and provide approval at the earliest."

57.5 It was thus the Engineer who was causing the difficulties and the Respondent again requested the Engineer to evaluate the program in a proper manner and to provide approval thereof as soon as possible.

57.6 The Respondent further pointed out that if the extension of time claims had been properly determined, within the time periods prescribed by the Contract, there would have been adequate time to complete the works within the contractual Time for Completion and the Respondent would have had adequate cashflow available to it on the project.

57.7 In this regard the Respondent stated:

"Our rightful claim for an extension of time (reference AQ5AQ6-SPQ-KER-GEN-LET-0691 dated 15 March 2018) was submitted through claim for EOT-3 for a review by your team. Unfortunately, and for reasons undisclosed so far, the Engineer chose not to review the same and after a period of almost 7 months, and the failure on the part of the client/consultant to follow protocol per Clause 3.5 of the Conditions of Contract is construed as breach on the part of client/consultant. Having breached the Contract the consultants sent a letter requesting for an update to the EOT claim, which was necessitated due to such inaction of determination on the part of the Engineer. This is deemed to have caused damages to contractor SPQ in terms of additional expenses to administer the project completion involving all the stakeholders of the project."

57.8 It was thus not the Respondent who was causing the delays but the Engineer's maladministration of the Contract that was doing so.

57.9 The Claimant refers in paragraph 6.23 of the Statement of Claim to additional advance payments made by the Claimant. The context of those payments is the following:

57.9.1 The Claimant and the Engineer had frustrated the provisions of the Contract regulating revisions to the Time for Completion, frustrated and deliberately refused the Respondent's legitimate claims for extensions of time, as a result of which the Respondent was carrying the cost of the extended Contract period.

57.9.2 This notwithstanding, the Respondent complied at all times with its obligations to make payment to its sub-contractors and in instances procured material on behalf of the sub-contractors and assisted them with the provision of manpower.

57.9.3 Nonetheless, because of the cash constraints created by the conduct of the Claimant and the Engineer, certain payments were made directly to sub-contractors, in which case those payments were made directly by the Claimant's bank to the sub-contractors and those were recorded in letters, signed for by the Employer representative.¹⁴⁹

58 The Respondent therefore asserts that the delays arose from Employer delays and other delays beyond its control.

Claimant's Claim for Liquidated Damages

59 Clause 8.7 of the Contract stipulates:

"If the Contract fails to comply with sub-clause 8.2 [Time for Completion], the Contractor shall subject to subclause 2.5 (Employers Claims) pay delay damages to

¹⁴⁹ Exhibit R-275 - see for example Respondent's letter dated 4 September 2021 – ref: SPQ-AKY/011/2021/RK/94.

the employer for this default. These delay damages shall be the sum stated in the Appendix to Tender, which shall be paid for every day which shall elapse between the relevant Time for Completion and the date stated in the Taking-Over Certificate. However, the total amount due under this sub-clause shall not accede the maximum amount of delay damages (if any) stated in the Appendix to Tender”.

60 “Time for Completion” is defined in Clause 1.1.3.3 as:

“Time for Completion means the time for completing the Works or a Section (as the case may be) under sub-clause 8.2 [Time for Completion], as stated in the Appendix to Tender (with any extension under sub-clause 8.4 [extension of Time for Completion]), calculated from the commencement date.” (Emphasis supplied).

61 Clause 10.2 of the Contract stipulates:

“...if a Taking-Over Certificate has been issued for a part of the works (other than a section), the delay damages thereafter for completion of the remainder of the works shall be reduced. Similarly, the delay damages for the remainder of the section (if any) in which this part is included shall also be reduced. For any period of delay after the date stated in this Taking-Over Certificate, the proportional reduction in these delay damages shall be calculated as the proportion which the value of the part so certified bears to the value of the works or section (as the case may be) as a whole. The engineer shall proceed in accordance with sub-clause 3.5 [Determinations] to agree or determine these proportions. The provisions of this paragraph shall only apply to the daily rate of delay damages under Sub Clause 8.7 [Delay Damages] and shall not affect the maximum amount of these damages.

62 In relation to the quantum of delay damages, the Appendix to Tender stipulates:

62.1 Delay damages will be calculated on 0.5% of the Accepted Contract Amount per week;

62.2 The maximum amount of delay damages will be 10% of the final contract price.

63 The “Accepted Contract Amount” is defined in Clause 1.1.4.1 of the Contract as being:

"Accepted Contract Amount means the amount accepted in the Letter of Acceptance for the execution and completion of the Works and the remedying of any defects".

- 64 The Accepted Contract Amount was QAR 895 million. The Contract contains no definition for "final contract price" and contains only a definition for "Contract Price at clause 1.1.4.2 of the Contract which stipulates:

"Contract Price means the price defined in sub-clause 14.1 (the Contract Price) and includes adjustments in accordance with the Contract."

- 65 Clause 14.1 stipulates that the Contract Price is, unless otherwise stated in the Particular Conditions:

"(a) The Contract Price shall be agreed or determined under sub-clause 12.3 [Evaluation] and be subject to adjustments in accordance with the Contract..."

(c) Any quantities which may be set out in the Bill of Quantities or other Schedule are estimated quantities and are not taken as the actual and correct quantities..."

- 66 For purposes of calculating any entitlement on the part of the Claimant to payment of liquidated damages, applying these provisions:

66.1 The rate per week for delayed completion beyond the Time for Completion as defined was QAR 4,475,000;

66.2 The 10% cap on delay damages amounts to QAR 89,500,000;

66.3 The cap on delay damages is thus reached at 20 weeks or 140 days. As stated, the Respondent's assessment of all delay events based on the as-built critical path determines that the Respondent is entitled to an extension of 903 days, revising the Time for Completion to 2 February 2021.

- 67 Clause 10.2 of the Contract stipulates, inter alia:

"The employer shall not use any part of the works (other than as temporary measure which is either specified in the Contract or agreed by both Parties unless and until the engineer has issued a taking over certificate for this part. However, if the employer does use any part of the works before the taking over certificate is issued:

- (a) The part which was used shall be deemed to have been taken over as from the date on which it is used;*
- (b) The contractor shall cease to be liable for the care of such part as from this date, when responsibility shall pass to the employer; and*
- (c) If requested by the contractor the engineer shall issue a taking over certificate."*

68 By letters dated 3 March 2022 and 22 June 2022, the Engineer purported to issue partial Taking-Over Certificates in terms of Clause 10.2 of the Contract.¹⁵⁰

69 On 15 March 2022 and 26 May 2022, the Contractor wrote to the Engineer pointing out that the Employer had taken over the works and that the works had become deemed to be taken over.¹⁵¹

70 The Claimant appears now to have accepted the implications of having taken possession of the works and the impact thereof by virtue of Clause 10.2 and pleads the certified taking over dates in paragraph 8.1 of the Statement of Claim. Their position appears to be (because it concedes the effects of having taking over the works) that the certified taking over dates are now the following:

Element of Works	Certified Taking-Over Date
Tower AQ5	1 February 2021
Tower AQ6	1 October 2020

¹⁵⁰ Exhibit R-132 – Respondent’s letter ref: AQ5AQ6-SPQ-KER-GEN-LET-1460.

¹⁵¹ Exhibit R-133 - Respondent’s letter ref: AQ5AQ6-SPQ-KER-GEN-LET-1467..

Standard Villas	1 October 2020
VIP Villas	27 January 2021
Townhouse AQ5	1 February 2021
Townhouse AQ6	1 October 2020

71 The Certified Taking Over Dates pleaded by the Claimant in paragraph 8.1 of the Statement of Claim all precede 2 February 2021, which is the revised Time for Completion which will be established by the Respondent by way of its counterclaims in these proceedings. Consequently, on a proper assessment of the Respondent's entitlement to a revision of the Time for Completion, such entitlement is entirely dispositive of the Claimant's claims for delay damages or damages.

72 The Respondent wrote to the Engineer on 22 September 2021 and recorded that all works had been handed over on a floor-by-floor basis, that the Claimant was duly given the opportunity to prepare the apartments and villas for any additional works or for occupation and that the Claimant had the beneficial occupation and use of all parts of the works in accordance with and as contemplated by the provisions of clause 10.2(a).¹⁵²

73 In addition, the Respondent has kept detailed schedules of the dates on which snags were raised by the Engineer, the dates on which the snags were addressed, the dates on which the keys were handed over and any remarks regarding the outstanding questions from the Engineer.¹⁵³ These contemporaneous records and subsequent records, in addition to the Engineer's own certification shows that the works were handed over and achieved taking over prior to the extended date of Time for Completion which will be established by the Respondent in these proceedings.

¹⁵² Exhibit R-112 - Respondent's letter to the Engineer ref: AQ5AQ6-SPQ-KER-GEN-LET-1411.

¹⁵³ Exhibit R-131 - AQ5AQ6-Desnag WIRs and Key Handover Apartment Status..

Mobica – joinery sub-contractor

- 74 on 3 February 2016, the Respondent addressed an email to the Claimant setting out a proposal for the wood and joinery package to be undertaken by Architectural Joinery.¹⁵⁴ In terms thereof, a joinery package was proposed with a value of QAR 63,315,730.
- 75 On 11 April 2016, the Respondent addressed a further email to the Claimant, attaching a revised final offer from Architectural Joinery, to take into account the ironmongery.¹⁵⁵
- 76 On 16 April 2016, the Respondent addressed an email to the Claimant, providing a priced bill of quantities for the Architectural Joinery works.¹⁵⁶
- 77 In May 2016, the Respondent, Claimant and Engineer attended a site visit at the factory of Architectural Joinery in China, to ascertain and quality check the manufacturing processes.
- 78 On 25 June 2016, the Respondent addressed an email to the Claimant, identifying queries raised in relation to the Architectural Joinery bill of quantities.¹⁵⁷
- 79 On 20 August 2016, the Claimant issued an instruction to the Respondent to change provisional sum 6 in the bill of quantities in accordance with the provisions of Clause 13.1(h) and 13.5(a) of the Contract and advised that it had finalised a subcontract price for the wood and joinery package in the amount of QAR 45 million with Mobica directly.¹⁵⁸
- 80 On 25 August 2016, the Respondent wrote to Mobica for Integrated Industries ("Mobica"), inviting them to provide documents for purposes of concluding a

¹⁵⁴ Exhibit R-34 – Respondent's email by Harish Borah to Chandan Kamath dated 3 February 2016.

¹⁵⁵ Exhibit R-35 – Respondent's email by Harish Borah to Chandan Kamath dated 11 April 2016.

¹⁵⁶ Exhibit R-36 – Respondent's email by Harish Borah to Chandan Kamath dated 16 April 2016.

¹⁵⁷ Exhibit R-37 – Respondent's email by Harish Borah to Chandan Kamath dated 25 June 2016.

¹⁵⁸ Exhibit R-113 – Claimant's letter dated 20 August 2016 – ref: SQP/AQ5&6/2016/12.

subcontract for the wood and joinery packages on the project, in accordance with the Claimant's instructions.¹⁵⁹

81 On 27 August 2016, the Respondent wrote to the Claimant recording its objections to the appointment of Mobica by virtue of it not having been properly evaluated and the Respondent having been completely excluded in the appointment of Mobica as a subcontractor. The Respondent therefore recorded that in accordance with the provisions of Clause 5.2 of the Contract, the Claimant would have to indemnify the Respondent against and from all obligations and liability arising under and in connection with the subcontract and the subcontractors performance.¹⁶⁰

82 On 3 September 2016, the Claimant wrote to the Respondent advising that it was not appointing Mobica as a nominated subcontractor and *"urged to evaluate all parameters in line with your subcontracting requirements and raise your objections accordingly if any. Therefore, your claim is rejected and the fixed rate will be as per our contract agreement"*.¹⁶¹

83 On 22 September 2016, the Claimant wrote to the Respondent confirming and advising it had accepted specific contracting terms with Mobica, contrary to the generally accepted terms for the appointment of subcontractors on the project. Those terms would include performance security by way of an undated cheque rather than a bank guarantee and an advance payment of 50% of the contract sum.¹⁶²

84 In response to objections raised by the Respondent, the Claimant reissued its letter of 22 September 2016 on 11 October 2016 in which the Claimant now stated:

"Furthermore, we agree to indemnify Shapoorji Pallonji Qatar WLL in case they fail to recover amount limited to above terms and not covered by Bank Guarantee, which become due to them from M/s Mobica for Integrated Industries for any of their contractual default in relation to the above mentioned terms.

¹⁵⁹ Exhibit R-114 – Respondent's letter to Mobica dated 25 August 2016 – ref: AQ3AQ4-SPQ-MII-GEN-LET-0001

¹⁶⁰ Exhibit R-115 - Respondent's letter dated 27 August 2016 – ref: SPQ-AL-ORAIQ/011/2016/RK/037.

¹⁶¹ Exhibit R-116 – Claimant's letter dated 3 September 2016 – ref: -SPQ/AQ5&6/2016/13.

¹⁶² Exhibit R-117 – Claimant's letter dated 22 September 2016 – ref: -SPQ/AQ5&6/2016/14.

*You are requested to finalise Mobica contract agreement accordingly at the earliest.”*¹⁶³

85 On 7 November 2016 the Claimant wrote to the Respondent advising that in all previous correspondence any reference to “*Mobica for Integrated Industries*” must be replaced with a reference being “*M/s Modern Building Carpentry (Mobica)*”.¹⁶⁴

86 Consequently, the exclusion contained in Clauses 4.4 and 8.4 of the Particular Conditions stipulating that the Claimant will not be liable to the Respondent for delay, loss or damage by a nominated subcontractor and that the Respondent is not entitled to an extension of time for delay by the subcontractor does not apply.

87 On a proper interpretation of the Contract documentation and the agreement between the parties, the Claimant indemnified the Respondent for any delays arising from the performance of Mobica and to the extent that any delays in the completion of the works are attributable to Mobica’s deficient performance, the Claimant:

87.1 Is obliged to grant the Respondent an extension of time in respect of such delay;

87.2 Is precluded from claiming delay penalties from the Respondent over the period attributable to the Mobica delay.

Conclusion – Delay Liability

88 Consequently, the Claimant is not entitled to payment of liquidated damages:

88.1 The Engineer failed to timeously or at all determine the Respondent’s extension of time claims;

88.2 If it had done so, the time for completion would have been extended until at least 2 February 2021. As appears from the Respondent’s counterclaim, the retrospective as-built delay analysis is ongoing and the Respondent

¹⁶³ Exhibit R-118 – Claimant’s letter dated 11 October 2016 – ref: -SPQ/AQ5&6/2016/14.

¹⁶⁴ Exhibit R-119 – Claimant’s letter dated 7 November 2016 – ref: -SPQ/AQ5&6/2016/16.

anticipates establishing an entitlement to revision to the time for completion beyond that;

88.3 The works were completed and handed over to the Claimant prior to such extended date for completion of the works;

88.4 To the extent that the works were handed over beyond the extended time for completion as is established by the Respondent in these proceedings, but those delays were attributable to delayed works by Mobica, those delays are excusable and constitute grounds for further revision to the time for completion, such that the Respondent is not liable for any delay damages;

88.5 Alternatively, and to the extent that the completion of any part falls beyond 2 February 2021, the application of any delay damages should be apportioned in accordance with the provisions of Clause 10.2. The Respondent has prepared a schedule which sets out the date of taking over of each of the works and the proportioned value of those works by which the delay penalty is reduced once the Respondent takes over that component of the works. The progressive reduction in delay penalties, measured against the Respondent's rights to a revision to the time for completion will be dealt with more fully in witness statements and by the Respondent's delay and quantum experts.¹⁶⁵

89 This is an aspect which will be addressed by the Respondent greater in witness statements and independent expert reports.

90 To the extent that the Claimant suggests in paragraph 8.4 of the Statement of Claim that the Respondent failed to hand over as-built drawings or manuals, the Respondent refers to the system handing over log which records the references of all documents handed over and the Engineer's approvals thereof.

¹⁶⁵ Exhibit R-120 – Respondent's Schedule of Hand Over dates and proportionate values of each component of the works.

Additional Consultants' Costs

- 91 The Claimants' claim for the costs of consultant incurred beyond 30 September 2018 is premised upon:
- 91.1 Ignorance of the Respondents entitlement to an extension of time to at least 21 March 2021;
- 91.2 Clause 8.7(a) of the Contract, as introduced by the Particular Conditions;
- 91.3 The provisions of Clause 3(a) of Addendum No.1.
- 92 Clause 3(a) of Addendum No.1 purports to impose an obligation on the Respondent to compensate the Claimant for any additional consultant, management and supervision costs incurred by the Claimant beyond 1 October 2018 and up to the date of the Taking-Over Certificate. For the reasons set out more fully in the counterclaim, the Respondent contends that Addendum No.1 is unenforceable.
- 93 However, the provisions of Clause 3(a) of the addendum are in any event merely a repetition of amendments to Clause 8.7 of the Contract contained in the Particular Conditions. Clause 8.7 stipulates that the Respondent will bear additional consultant, construction management and supervision costs incurred by the Claimant for delayed completion but it does so in the context of Clause 8.7 which, properly construed, recognises that those will not be payable if the Respondent is entitled to an extension of the Time for Completion.
- 94 Given that the Respondent has established an entitlement to an extension of the Time for Completion to 2 February 2021, there is no basis upon which the Claimant can establish any entitlement for its claims over the period October 2018 to March 2021.
- 95 The Claimant itself recognises in paragraph 8.1 of the Statement of Claim that the works had in all respects been handed over and achieved taking-over status by 2 February 2021. Consequently, there is no basis for the Claimant's claims over the period February to December 2021. Moreover, the Claimant relies, for this claim, on the express wording of clause 3(a) of Addendum No. 1. This clause only allows the

Claimant to recover costs of consultants incurred between the contractual Time for Completion and dates stated in the Taking Over Certificate. Thus, on the Claimant's own version, there is no basis for the claims which it advances in respect of consultant's costs over the period January to July 2022.

96 Consequently, the Claimant denies all liability for such claims.

UDC Penalty

97 Clause 8.7 of the Contract, as amended through the Particular Conditions stipulates that the Respondent will pay to the Claimant:

"QAR 60,000 per day (UDC penalty applicable to the Employer) for every day which shall elapse between the relevant Time for Completion and the date stated in the Taking-Over Certificate".

98 On a proper construction of the Contract, the obligation to indemnify the Claimant for the UDC penalty arises only if the Respondent is not entitled to an extension of time for the Time for Completion in terms of Clause 8.4 and completion has been delayed beyond the contractual Time for Completion.

99 The Respondent has established an entitlement to an extension for the Time for Completion to at least 2 February 2021.

100 The Claimants' claim for payment of UDC penalties applies to penalties which were alleged to have been imposed upon the Claimant in September 2021. The Claimant has, however, not particularised how that amount is made up and over which period the amount allegedly arose.

101 It is, in any event, irrelevant as the contractual position as between the Claimant and the Respondent is that the Respondent only attracts liability for the UDC delay penalty indemnification in the event that it delayed completion of the works. It did not as it achieved completion prior to the extended Time for Completion of 2 February 2021.

102 Consequently, the Respondent denies liability for these claims.

Claims for Consequential Losses

103 The Claimant seeks payment of certain consequential damages and in particular, claims loss of rental and the running costs of the utilities. In doing so, it relies on an incorrect interpretation of Sub-clause 8.7 of the Contract and in the alternative, on a series of provisions of the Qatar Civil Code. Before addressing the two claims, the Respondent will address the proper interpretation of the Contract and the provisions of Qatar law relied upon.

104 Article 169 of the Qatar Code stipulates:

"Where the wording of the contract is clear, it shall not be capable of deviating from or construing the intent of the contracting parties.

Where a contract must be construed, the common intention of the parties shall be sought without restriction to the literal meaning of the words, taking into account the nature of the transaction as well as the honesty and confidence which should prevail between the parties in accordance with the commercial custom."

105 The Respondent contends that the wording of the Contract is clear and must be applied accordingly.

106 Sub-clause 8.7 of the Contract stipulates:

"If the contractor fails to comply with sub-clause 8.2 [Time for Completion], the contractor shall subject to sub-clause 2.5 [Employers Claims] pay delay damages to the Employer for this default. These delay damages shall be the sum stated in the Appendix to Tender, which shall be paid for every day which shall elapse between the relevant time for completion and the date stated in the Taking-Over Certificate. However, the total amount due under this Sub-Clause shall not exceed the maximum amount of delay damages (if any) stated in the Appendix to Tender." (Emphasis supplied).

107 By way of the Particular Provisions, the Claimant added the following provision to Clause 8.7:

"These delay damages shall not prejudice the Employers right to compensation in respect of any damage sustained by him for such default, or any damages sustained in the event of termination under Sub-Clause 15.2 [Termination by Employer] prior to completion of the works."

- 108 On the plain and unambiguous wording of the subclause, any claim which the Claimant may have arising from the Respondents failure to discharge its obligations under Clause 8.7, shall be limited to the maximum amount stipulated in the Appendix to Tender.
- 109 The Appendix to Tender stipulates that the maximum amount contemplated by Clause 8.7 is 10% of the final contract price. Any claim under Clause 8.7, irrespective of its nature, is thus capped to an amount of QAR 89,500,000.
- 110 The subclause requires that any claim which the Employer seeks to advance in terms of Sub-Clause 8.7 must comply with the provisions of Clause 2.5. Clause 20.5 in turn requires the Engineer to determine the Employer's claim in accordance with the provisions of Clause 3.5.
- 111 It therefore is a requirement of Sub-Clause 8.7 that any claim which the Employer wishes to assert under that subclause must be determined by the Engineer in accordance with the powers given to the Engineer by the Contract.
- 112 Clause 2.5 identifies the jurisdictional limits of the Engineer's power and stipulates that the entitlement on the part of the Claimant, to be determined by the Engineer, must concern *"any Clause of these Conditions or otherwise in connection with the Contract"*.
- 113 Consequently, the jurisdictional powers granted to the Engineer do not extend to determining claims for consequential losses arising from alleged breaches of contract. In the premises, the Claimants' claims for lost rental income have an insufficient causal nexus to the Contract to be susceptible to an Engineer's determination under Clause 3.5. Consequently, the Respondent submits that:

- 113.1 Neither the loss of rental income and the claim for running costs of utilities, both of which are consequential damages, are susceptible to an Engineer's determination and thus claimable under Clause 8.7 of the Contract;
- 113.2 Whatever claim is ultimately permitted by the Tribunal may not exceed the cap of 10%, however such claim is made up.
- 114 In the alternative, the Claimant relies on a series of provisions of the Qatar Civil Code to contend that:
- 114.1 If it is not permitted to advance the claim under Clause 8.7 the provisions cited entitle the Claimant to recover actual costs incurred by delayed completion; and
- 114.2 The cited provisions permit the Claimant to exceed the 10% cap prescribed by the Appendix to Tender.
- 115 The approach adopted by the Claimant contravenes Article 169 of the Qatar Civil Code which stipulates expressly that where the wording of the contract is clear, a party shall not be capable of deviating from or construing the intent of the parties. The Claimant is seeking to deviate from the unambiguous and clear wording of the Contract, which is impermissible.
- 116 The Respondent will however briefly deal with the provisions cited but expressly reserves the right to amplify the submissions relating to the Claimants reliance on the Civil Code in due course.
- 117 The starting provision is not the provision cited by the Respondent but rather Article 169 of the Qatar Civil Code (addressed above) and Article 259 of the Civil Code. Article 259 stipulates:
- "The parties may agree to discharge the obligor from any liability arising from his failure or delay to perform his contractual obligation, except for his fraud or gross negligence."*

That is precisely what Sub-Clause 8.7 does: it regulates the extent of liability for delayed performance and the Claimant cannot be permitted to escape the clear and unambiguous provisions of the Contract.

118 Article 172 of the Civil Code requires the parties to perform the Contract in a manner that is consistent with the requirements of good faith. There is no suggestion that the Respondent has acted in bad faith and in any event, this would again constitute a departure from the express wording of Article 169. This provision does not assist the Claimant.

119 Article 199 relates to Chapter 3 of the Civil Code governing responsibility for personal acts and stipulates that a person who commits an act that causes damage to another party shall be liable to indemnify such damage. The Respondents position is that the provision is not applicable to the present matter.

120 Article 256 governs compensatory performance and stipulates:

"Where the obligor fails to perform the obligation in kind or delays such performance, he shall indemnify any damages suffered by the obligee, unless such non-performance or delay therein was due to a cause beyond his control."

121 The Contract expressly governs liability for losses sustained by delay through delay damages and Clause 8.7. The Contract also expressly caps liability for delay damages. There is no basis upon which this clause can be relied upon to override the cap agreed between the parties, which is expressly recognised by Article 259 of the Qatar Civil Code.

122 Article 263 of the Civil Code stipulates that damages may be claimed for losses incurred by an obligee, including loss of profit, provided that the damages or losses of profit are a natural consequence of the failure. However, it also stipulates that *"damages shall be deemed consequential if they were reasonably foreseeable or within the contemplation of the parties at the time of the conclusion of the contract."* The article thus excludes this claim for consequential losses in this matter.

- 123 Article 264 of the Civil Code stipulates that an indemnity may include moral damages. Moral damages are irrelevant to the consequential losses being claimed by the Claimant here.
- 124 Article 268 concerns claims for losses sustained as a result of a party's failure to make payments timeously. It is not applicable to the claims being addressed here.
- 125 Article 684 of the Code governs liability for defective materials or workmanship. It is not relevant to these consequential losses claimed. The same applies to Article 685 and 686.
- 126 Article 687 concerns a situation where the contract does not set conditions and periods within which the work is to be completed. The Contract in this matter clearly sets conditions and time periods and the article is inapplicable to these consequential claims.

Loss of Rental Income

- 127 For the reasons set out above, it is the Respondents position that the claim for loss of rental fails as a matter of contract and as a matter of Qatari law. Moreover, the Claimant has made no attempt to show that any such alleged rental losses were suffered by it and the Respondent denies liability therefore. The Respondent's right to address this further in evidence, including through appropriate expert evidence, if necessary, are expressly reserved.

- 128 As far as the quantification of the alleged claim is concerned:

128.1 The Claimant previously relied upon a report which it commissioned from ValuStrat (Exhibit C-14). That report did not investigate the Claimant's rental contract or opportunities or in any way assess the Claimants' claims. It merely gave a broad description and opinion of rentals which might have been obtained in the market;

- 128.2 The Claimant has evidently recognised this and has abandoned its reliance thereon. It has now indicated that it will quantify the claim through a duly appointed expert;¹⁶⁶
- 128.3 It therefore appears that the Claimant intends to instruct a claims consultant to formulate its claim which has to date not been formulated;
- 128.4 The Respondent expressly reserves the right to address the quantification of the claim and to instruct an appropriately qualified expert in due course, should that become necessary.

Running Cost of Utilities

- 129 As indicated, this is a consequential damages claim which is advanced under the provisions of Sub-Clause 8.7, alternatively the provisions of the Qatar Civil Code listed in paragraphs 10.29 and 10.30 of the Statement of Claim. For the reasons set out above, the Respondents position is that the claim is impermissible both as a matter of contract and as a matter of law.
- 130 The Claimants' claims concern running costs incurred over the period March to December 2021. As set out above, the Respondent has established a right to an extension of the Time for Completion until 2 February 2021. That alone is dispositive of any claims up to that extended date.
- 131 Furthermore, the Respondent achieved taking over and handed over all of the works to the Claimant by or before 2 February 2021, as a result of which the running costs were for the Claimant's account. In this regard, the Contract stipulates in Clause 17.2:
- "If a Taking-Over Certificate is issued (or is so deemed to be issued) for any Section of part of the Works, the responsibility for care of the Section or part shall then pass to the Employer."*

¹⁶⁶ Paragraph 10.35 of the Statement of Claim.

132 The claim also indicates that it relates to the cost of the permanent supply of water, electricity and cold air. This is consistent with the fact that the Claimant had taken occupation of the buildings and had commenced leasing the buildings.

133 There is simply no basis made out under the Contract or in law for the claim which is denied.

IV. CLAIMS RELATING TO ALLEGED NON-PERFORMANCE, RECTIFICATION OF DEFECTS AND INCOMPLETE WORKS

Notices of Non-Conformance

134 The Claimant alleges that the respondent failed to attend to or remedy defects in the works, in breach of its contractual obligations and obligations under the Qatar Civil Code. In reliance thereon, it lists notices of non-conformance issued by the Engineer, identifying the Respondents supposed non-conformance.

135 This illustrates yet another attempt by the Claimant to improperly present the facts in a misleading fashion.

136 The Claimant sets out below a replication of Appendix 2 to the Statement of Claim, which purports to list the non-conformance notices issued by the Engineer. However, the Respondent has added a column on the left identifying the Claimant exhibit and a column on the right commenting on the non-conformance notice in issue.

Attachment	Document No	Title	Status	
AOQ-Exhibit C-227	AQ5AQ6-MED-SPQ-ARC-NCR-0001 ²⁴⁴	Block Wall	Closed	
AOQ-Exhibit C-228	AQ5AQ6-MED-SPQ-ARC-NCR-0002 ²⁴⁵	Setting Out	Closed	
AOQ-Exhibit C-229	AQ5AQ6-MED-SPQ-ARC-NCR-0003 ²⁴⁶	Wall Cutting	Closed	
AOQ-Exhibit C-230	AQ5AQ6-MED-SPQ-ARC-NCR-0004 ²⁴⁷	Glues / Adhesive Materials	Closed	
AOQ-Exhibit C-231	AQ5AQ6-MED-SPQ-ARC-NCR-0005 ²⁴⁸	Block Works	Closed	
AOQ-Exhibit C-232	AQ5AQ6-MED-SPQ-ARC-NCR-0006 ²⁴⁹	Ceiling Ties	Closed	
AOQ-Exhibit C-233	AQ5AQ6-MED-SPQ-ARC-NCR-0007 ²⁵⁰	Defective Blocks	Closed	
AOQ-Exhibit C-234	AQ5AQ6-MED-SPQ-ARC-NCR-0008 ²⁵¹	Slab Edge	Closed	

AOQ-Exhibit C-235	AQ5AQ6-MED-SPQ-ARC-NCR-0009 ²⁵²	Cladding Damage	Closed	
AOQ-Exhibit C-236	AQ5AQ6-MED-SPQ-ARC-NCR-0010 ²⁵³	Material Handling & Storage of Cladding	Closed	
AOQ-Exhibit C-237	AQ5AQ6-MED-SPQ-ARC-NCR-0011 ²⁵⁴	Panel Cladding do not Match with the above floor	Closed	
AOQ-Exhibit C-238	AQ5AQ6-MED-SPQ-ARC-NCR-0014 ²⁵⁵	Damage in Installed Precast Panel	Closed	
AOQ-Exhibit C-239	AQ5AQ6-MED-SPQ-ARC-NCR-0015 ²⁵⁶	Surface Preparation (Ceiling)	Closed	
AOQ-Exhibit C-240	AQ5AQ6-MED-SPQ-ARC-NCR-0016 ²⁵⁷	Surface Preparation (Ceiling)	Closed	
AOQ-Exhibit C-241	AQ5AQ6-MED-SPQ-ARC-NCR-0017 ²⁵⁸	Damage in installed Precast Panel	Closed	
AOQ-Exhibit C-242	AQ5AQ6-KER-SPQ-ARC-NCR-0018 ²⁵⁹	precast panel window groove	Closed	
AOQ-Exhibit C-243	AQ5AQ6-KER-SPQ-ARC-NCR-0019 ²⁶⁰	Staircase Landing	Closed	
AOQ-Exhibit C-244	AQ5AQ6-KER-SPQ-ARC-NCR-0020 ²⁶¹	Precast Panel	Closed	
AOQ-Exhibit C-245	AQ5AQ6-KER-SPQ-ARC-NCR-0021 ²⁶²	CTS Panel	Closed	
AOQ-Exhibit C-246	AQ5AQ6-KER-SPQ-ARC-NCR-0022 ²⁶³	Precast Panel	Closed	
AOQ-Exhibit C-247	AQ5AQ6-KER-SPQ-ARC-NCR-0023 ²⁶⁴	Precast Panel	Closed	
AOQ-Exhibit C-248	AQ5AQ6-KER-SPQ-ARC-NCR-0024 ²⁶⁵	CTS Panel	Closed	
AOQ-Exhibit C-249	AQ5AQ6-KER-SPQ-ARC-NCR-0025 ²⁶⁶	Villa Block Works	Closed	
AOQ-Exhibit C-250	AQ5AQ6-KER-SPQ-ARC-NCR-0026 ²⁶⁷	Column SV.13 Standard Villa 20	Closed	
AOQ-Exhibit C-251	AQ5AQ6-KER-SPQ-ARC-NCR-0027 ²⁶⁸	Marble	Closed	
AOQ-Exhibit C-252	AQ5AQ6-KER-SPQ-ARC-NCR-0028 ²⁶⁹	Work Done in site Non-Compliance with Approved Shop Drawings	Closed	
AOQ-Exhibit C-253	AQ5AQ6-KER-SPQ-ARC-NCR-0029 ²⁷⁰	Villa Blocks Works	Closed	
AOQ-Exhibit C-254	AQ5AQ6-KER-SPQ-ARC-NCR-0030 ²⁷¹	Pre-cast Panel	Closed	
AOQ-Exhibit C-255	AQ5AQ6-KER-SPQ-ARC-NCR-0031 ²⁷²	Standard Villa Rendering (Villas 23, 22, 21)	Closed	
AOQ-Exhibit C-256	AQ5AQ6-KER-SPQ-ARC-NCR-0032 ²⁷³	Staircase Handrail	Closed	
AOQ-Exhibit C-257	AQ5AQ6-MED-SPQ-ARC-NCR-0033 ²⁷⁴	Damage in Installed Precast Pane	Closed	

AOQ-Exhibit C-258	AQ5AQ6-MED-SPQ-ARC-NCR-0034 ²⁷⁵	Damage in Installed Precast Panel	Closed	
AOQ-Exhibit C-259	AQ5AQ6-MED-SPQ-ARC-NCR-0035 ²⁷⁶	Block Works	Closed	
AOQ-Exhibit C-260	AQ5AQ6-KER-SPQ-ARC-NCR-0036 ²⁷⁷	Podium Ceiling Painting	Closed	
AOQ-Exhibit C-261	AQ5AQ6-MED-SPQ-ARC-NCR-0037 ²⁷⁸	Standard Villa Rendering	Closed	
AOQ-Exhibit C-262	AQ5AQ6-KER-SPQ-ARC-NCR-0038 ²⁷⁹	Slab Edge Precast Panels	Closed	
AOQ-Exhibit C-263	AQ5AQ6-KER-SPQ-ARC-NCR-0039 ²⁸⁰	Balcony Handrail	Closed	
AOQ-Exhibit C-264	AQ5AQ6-KER-SPQ-ARC-NCR-0040 ²⁸¹	Water Proofing Membrane	Closed	
AOQ-Exhibit C-265	AQ5AQ6-KER-SPQ-ARC-NCR-0041 ²⁸²	Installation of Marble Tiles not Matching with the Approved Sample	Closed	
AOQ-Exhibit C-266	AQ5AQ6-KER-SPQ-ARC-NCR-0042 ²⁸³	Installed Marble not Matching with Approved Control Samples	Closed	
AOQ-Exhibit C-267	AQ5AQ6-KER-SPQ-ARC-NCR-0043 ²⁸⁴	Installed Marble not Matching with Approved Control Samples	Closed	
AOQ-Exhibit C-268	AQ5AQ6-KER-SPQ-ARC-NCR-0044 ²⁸⁵	Installed Marble not Matching with Approved Control Samples	Closed	
AOQ-Exhibit C-269	AQ5AQ6-KER-SPQ-ARC-NCR-0045 ²⁸⁶	Installed Marble not Matching with Approved Control Samples	Closed	
AOQ-Exhibit C-270	AQ5AQ6-KER-SPQ-ARC-NCR-0046 ²⁸⁷	Installed Marble not Matching with Approved Control Samples	Closed	
AOQ-Exhibit C-271	AQ5AQ6-KER-SPQ-ARC-NCR-0047 ²⁸⁸	Installed Marble not Matching with Approved Control Samples	Closed	
AOQ-Exhibit C-272	AQ5AQ6-KER-SPQ-ARC-NCR-0048 ²⁸⁹	Insufficient Clear Height which is not Matching with Approved S.D	Closed	
AOQ-Exhibit C-273	AQ5AQ6-MED-SPQ-ARC-NCR-0049 ²⁹⁰	Damage in Installed Precast Panel	Closed	
AOQ-Exhibit C-274	AQ5AQ6-KER-SPQ-ARC-NCR-0050 ²⁹¹	Bathroom Wall Tile Falling Off	Closed	
AOQ-Exhibit C-275	AQ5AQ6-KER-SPQ-ARC-NCR-0051 ²⁹²	Using of Non-Fire rated Sealant to Fill the Gap between Fire rated Door and Wall	Closed	
AOQ-Exhibit C-276	AQ5AQ6-KER-SPQ-ARC-NCR-0052 ²⁹³	Improper Painting Procedure Around Electrical	Closed	

		Sockets/ Switches		
AOQ-Exhibit C-277	AQ5AQ6-KER-SPQ-ARC-NCR-0053 ²⁹⁴	Improper Epoxy Floor Application	Closed	
AOQ-Exhibit C-278	AQ5AQ6-KER-SPQ-ARC-NCR-0054 ²⁹⁵	Poor Quality of Balcony Handrail Installation	Closed	
AOQ-Exhibit C-279	AQ5AQ6-KER-SPQ-ARC-NCR-0055 ²⁹⁶	Paint Stains Observed on Wooden Doors	Closed	
AOQ-Exhibit C-280	AQ5AQ6-KER-SPQ-ARC-NCR-0056 ²⁹⁷	Balcony Handrail	Closed	
AOQ-Exhibit C-281	AQ5AQ6-KER-SPQ-ARC-NCR-0057 ²⁹⁸	Precast Installation	Closed	
AOQ-Exhibit C-282	AQ5AQ6-KER-SPQ-ARC-NCR-0058 ²⁹⁹	Precast Installation	Closed	
AOQ-Exhibit C-283	AQ5AQ6-KER-SPQ-ARC-NCR-0059 ³⁰⁰	Precast and Planter Box Installation	Closed	
AOQ-Exhibit C-284	AQ5AQ6-KER-SPQ-ARC-NCR-0060 ³⁰¹	Curtain Wall	Closed	
AOQ-Exhibit C-285	AQ5AQ6-KER-SPQ-ARC-NCR-0061 ³⁰²	Improper Distance Between Aluminum Cladding Window W108 and Precast Cladding	Closed	
AOQ-Exhibit C-286	AQ5AQ6-KER-SPQ-ARC-NCR-0062 ³⁰³	Improper Distance Between Aluminum Cladding Window W108 and Precast Cladding	Closed	
AOQ-Exhibit C-287	AQ5AQ6-KER-SPQ-ARC-NCR-0063 ³⁰⁴	Dishwasher Door	Closed	
AOQ-Exhibit C-288	AQ5AQ6-KER-SPQ-ACR-NCR-0064 ³⁰⁵	4th Elevation (Seaside) of AQ5 at G.F Level	Closed	
AOQ-Exhibit C-289	AQ5AQ6-KER-SPQ-ARC-NCR-0065 ³⁰⁶	Standard Villa 23 (Front, Rear Elevation)	Closed	
AOQ-Exhibit C-290	AQ5AQ6-KER-SPQ-ARC-NCR-0066 ³⁰⁷	Rear Elevation at the Wall between VIP-2D and VIP-2E	Closed	
AOQ-Exhibit C-291	AQ5AQ6-KER-SPQ-ARC-NCR-0067 ³⁰⁸	Depth of Trench at MV Room not as per Approved Shop Drawing	Closed	
AOQ-Exhibit C-292	AQ5AQ6-KER-SPQ-ARC-NCR-0068 ³⁰⁹	Depth of Trench at MV Room not as per Approved Shop Drawing	Closed	
AOQ-Exhibit C-293	AQ5AQ6-KER-SPQ-ARC-NCR-0069 ³¹⁰	Using of Fascia with Thickness not Matching with Approved Material - Project Specifications	Closed	
AOQ-Exhibit C-294	AQ5AQ6-KER-SPQ-ARC-NCR-0070 ³¹¹	Using of Metal Flashing with Size/ Color not	Closed	

		Matching with Project Specification/ Approved Shop Drawing		
AOQ-Exhibit C-295	AQ5AQ6-MED-SPQ-ARC-NCR-0071 ³¹²	Poor Quality for Precast Panel Installation Repairing Works	Closed	
AOQ-Exhibit C-296	AQ5AQ6-KER-SPQ-ARC-NCR-0072 ³¹³	Poor Quality for Precast Panel Repairing Works	Closed	
AOQ-Exhibit C-297	AQ5AQ6-KER-SPQ-ACR-NCR-0073 ³¹⁴	Water Leak from Planter Boxes	Not Closed	
AOQ-Exhibit C-298	AQ5AQ6-KER-SPQ-ACR-NCR-0074 ³¹⁵	Leakage from the Slab Beneath Swimming Pool AQ5	Not Closed	
AOQ-Exhibit C-299	AQ5AQ6-KER-SPQ-ARC-NCR-0075 ³¹⁶	Water Leak at Basement Level Below Drainage Points/ Water Feature Areas	Not Closed	
AOQ-Exhibit C-300	AQ5AQ6-KER-SPQ-ARC-NCR-0076 ³¹⁷	Precast Installation	Closed	
AOQ-Exhibit C-301	AQ5AQ6-KER-SPQ-ARC-NCR-0077 ³¹⁸	Precast Installation (TH5)	Closed	
AOQ-Exhibit C-302	AQ5AQ6-KER-SPQ-ARC-NCR-0078 ³¹⁹	Bathroom Tiles	Closed	
AOQ-Exhibit C-303	AQ5AQ6-KER-SPQ-ARC-NCR-0079 ³²⁰	Balcony Drainage Pipe Exposed	Closed	
AOQ-Exhibit C-304	AQ5AQ6-KER-SPQ-ARC-NCR-0080 ³²¹	Marble Installation	Closed	
AOQ-Exhibit C-305	AQ5AQ6-KER-SPQ-ARC-NCR-0081 ³²²	Painting	Closed	
AOQ-Exhibit C-306	AQ5AQ6-KER-SPQ-ARC-NCR-0082 ³²³	Marble Installation	Closed	
AOQ-Exhibit C-307	AQ5AQ6-KER-SPQ-ARC-NCR-0083 ³²⁴	Waterproofing Membrane	Closed	
AOQ-Exhibit C-308	AQ5AQ6-KER-SPQ-ARC-NCR-0084 ³²⁵	Stairs Landing	Closed	
AOQ-Exhibit C-309	AQ5AQ6-KER-SPQ-ARC-NCR-0085 ³²⁶	Marble Installation	Closed	
AOQ-Exhibit C-310	AQ5AQ6-KER-SPQ-ARC-NCR-0086 ³²⁷	Marble Installation	Closed	
AOQ-Exhibit C-311	AQ5AQ6-KER-SPQ-ARC-NCR-0087 ³²⁸	Water Leakage	Not Closed	
AOQ-Exhibit C-312	AQ5AQ6-KER-SPQ-ARC-NCR-0088 ³²⁹	Incomplete Structural Work Activities	Closed	
AOQ-Exhibit C-313	AQ5AQ6-KER-SPQ-ARC-NCR-0089 ³³⁰	Concrete Slurry Stains on Precast Surface	Not Closed	
AOQ-Exhibit C-314	AQ5AQ6-KER-SPQ-ARC-NCR-0090 ³³¹	Major Crack Level Axis TH6A (between Parking Spaces 79 & 80)	Closed	
AOQ-Exhibit C-315	AQ5AQ6-KER-SPQ-ARC-NCR-0091 ³³²	Improper Rendering Work Procedures	Closed	
AOQ-Exhibit C-316	AQ5AQ6-KER-SPQ-ARC-NCR-0092 ³³³	Lift Lobby	Closed	
AOQ-Exhibit C-317	AQ5AQ6-KER-SPQ-ARC-NCR-0093 ³³⁴	Staircase Fire Exit Headroom Minimum	Closed	

		Requirement Not Fulfilled		
AOQ-Exhibit C-318	AQ5AQ6-KER-SPQ-ARC-NCR-0094 ³³⁵	Incorrect Slope for Driveway	Closed	
AOQ-Exhibit C-319	AQ5AQ6-KER-SPQ-ARC-NCR-0095 ³³⁶	Staircase Fire Exit Headroom Minimum Requirement Not Fulfilled	Closed	
AOQ-Exhibit C-320	AQ5AQ6-KER-SPQ-ARC-NCR-0096 ³³⁷	Traffic Coat Defects	Closed	
AOQ-Exhibit C-321	AQ5AQ6-KER-SPQ-ARC-NCR-0097 ³³⁸	Traffic Coat Defects	Closed	
AOQ-Exhibit C-322	AQ5AQ6-KER-SPQ-ARC-NCR-0098 ³³⁹	Expansion Joint Profile Fixation has been Missed	Closed	
AOQ-Exhibit C-323	AQ5AQ6-KER-SPQ-ARC-NCR-0099 ³⁴⁰	Exposed-Projected Precast Corbel	Closed	
AOQ-Exhibit C-324	AQ5AQ6-KER-SPQ-ARC-NCR-0100 ³⁴¹	Major Defects for Wall and Ceiling Paint Works	Not Closed	
AOQ-Exhibit C-325	AQ5AQ6-KER-SPQ-ARC-NCR-0101 ³⁴²	Major Defects for Wall with Ceiling Paint Works	Not Closed	
AOQ-Exhibit C-326	AQ5AQ6-KER-SPQ-ARC-NCR-0102 ³⁴³	Traffic Coat Hatching Areas	Closed	
AOQ-Exhibit C-327	AQ5AQ6-KER-SPQ-ARC-NCR-0103 ³⁴⁴	Improper Joint Treatment (Major Cracks)	Closed	
AOQ-Exhibit C-328	AQ5AQ6-KER-SPQ-ARC-NCR-0104 ³⁴⁵	Using Improper Expansion Joint Profile	Closed	
AOQ-Exhibit C-329	AQ5AQ6-KER-SPQ-ARC-NCR-0105 ³⁴⁶	Improper Treatment for Expansion Joint	Closed	
AOQ-Exhibit C-330	AQ5AQ6-KER-SPQ-ARC-NCR-0106 ³⁴⁷	Handrail Projection Exceeding Allowable Limit	Closed	
AOQ-Exhibit C-331	AQ5AQ6-KER-SPQ-ARC-NCR-0107 ³⁴⁸	Improper Wall Finishing Detail	Closed	
AOQ-Exhibit C-332	AQ5AQ6-KER-SPQ-ARC-NCR-0108 ³⁴⁹	Dummy Precast Column Defects	Closed	
AOQ-Exhibit C-333	AQ5AQ6-KER-SPQ-ARC-NCR-0109 ³⁵⁰	Improper Stone Layout Detail	Closed	
AOQ-Exhibit C-334	AQ5AQ6-KER-SPQ-ARC-NCR-0110 ³⁵¹	Improper Method for Fixation of Fire Alarm- Manual Fire Alarm	Closed	
AOQ-Exhibit C-335	AQ5AQ6-KER-SPQ-ARC-NCR-0111 ³⁵²	Improper Termination-Transition between Floor Finishes	Closed	
AOQ-Exhibit C-336	AQ5AQ6-KER-SPQ-ARC-NCR-0112 ³⁵³	Improper Termination-Transition between Floor Finishes	Closed	
AOQ-Exhibit C-337	AQ5AQ6-KER-SPQ-ARC-NCR-0113 ³⁵⁴	Improper Termination-Transition between Floor Finishes	Closed	
AOQ-Exhibit C-338	AQ5AQ6-KER-SPQ-ARC-NCR-0114 ³⁵⁵	Improper Termination-	Closed	

		Transition between Floor Finishes		
AOQ-Exhibit C-339	AQ5AQ6-KER-SPQ-ARC-NCR-0115 ³⁵⁶	Improper Termination-Transition between Floor Finishes	Closed	
AOQ-Exhibit C-340	AQ5AQ6-KER-SPQ-ARC-NCR-0116 ³⁵⁷	Improper Termination-Transition between Floor Finishes	Closed	
AOQ-Exhibit C-341	AQ5AQ6-KER-SPQ-ARC-NCR-0117 ³⁵⁸	Improper Termination-Transition between Floor Finishes	Closed	
AOQ-Exhibit C-342	AQ5AQ6-KER-SPQ-ARC-NCR-0117 Rev.01 ³⁵⁹	Improper Termination-Transition between Floor Finishes Rev.01	Closed	
AOQ-Exhibit C-343	AQ5AQ6-KER-SPQ-ARC-NCR-0118 ³⁶⁰	Improper Floor Finishing Works	Closed	
AOQ-Exhibit C-344	AQ5AQ6-KER-SPQ-ARC-NCR-0119 ³⁶¹	Water Leakage from Ceiling	Closed	
AOQ-Exhibit C-345	AQ5AQ6-KER-SPQ-ARC-NCR-0120 ³⁶²	Improper Termination Finishing Date	Closed	
AOQ-Exhibit C-346	AQ5AQ6-KER-SPQ-ARC-NCR-0121 ³⁶³	Fire Exit Door Clashing with Floor Finishing NCR CLOSING	Closed	
AOQ-Exhibit C-347	AQ5AQ6-KER-SPQ-ARC-NCR-0122 ³⁶⁴	Improper Termination for Floor Finishing Detail	Closed	
AOQ-Exhibit C-348	AQ5AQ6-KER-SPQ-ARC-NCR-0123 ³⁶⁵	Improper Tiling Detail	Closed	
AOQ-Exhibit C-349	AQ5AQ6-KER-SPQ-ARC-NCR-0124 ³⁶⁶	Fire Rated Enclosure Around Cables Riser	Closed	
AOQ-Exhibit C-350	AQ5AQ6-KER-SPQ-ARC-NCR-0125 ³⁶⁷	Villa Water Leakage	Closed	
AOQ-Exhibit C-351	AQ5AQ6-KER-SPQ-ARC-NCR-0126 ³⁶⁸	Wooden Doors	Closed	
AOQ-Exhibit C-352	AQ5AQ6-KER-SPQ-ARC-NCR-0127 ³⁶⁹	Shower Enclosure	Closed	
AOQ-Exhibit C-353	AQ5AQ6-KER-SPQ-ARC-NCR-0128 ³⁷⁰	Precast Panels	Closed	
AOQ-Exhibit C-354	AQ5AQ6-KER-SPQ-ARC-NCR-0129 ³⁷¹	Water Leakage	Closed	
AOQ-Exhibit C-355	AQ5AQ6-KER-SPQ-ARC-NCR-0130 ³⁷²	Water Leakage	Closed	
AOQ-Exhibit C-356	AQ5AQ6-KER-SPQ-ARC-NCR-0131 ³⁷³	Wardrobes	Closed	
AOQ-Exhibit C-357	AQ5AQ6-KER-SPQ-ARC-NCR-0132 ³⁷⁴	Painting	Closed	
AOQ-Exhibit C-358	AQ5AQ6-KER-SPQ-ARC-NCR-0133 ³⁷⁵	Wooden Doors	Closed	
AOQ-Exhibit C-359	AQ5AQ6-KER-SPQ-ARC-NCR-0134 ³⁷⁶	Buckling Observed on WPC Steps	Closed	
AOQ-Exhibit C-360	AQ5AQ6-KER-SPQ-ARC-NCR-0135 ³⁷⁷	Water Leak at Basement Level - PPR Pipes Connections	Closed	

AOQ-Exhibit C-361	AQ5AQ6-KER-SPQ-ARC-NCR-0136 ³⁷⁸	Wooden Doors	Closed	
AOQ-Exhibit C-362	AQ5AQ6-KER-SPQ-ARC-NCR-0137 ³⁷⁹	Water Leakage	Closed	
AOQ-Exhibit C-363	AQ5AQ6-KER-SPQ-ARC-NCR-0138 ³⁸⁰	Wooden Doors	Closed	
AOQ-Exhibit C-364	AQ5AQ6-KER-SPQ-ARC-NCR-0139 ³⁸¹	Glass Handrail	Closed	
AOQ-Exhibit C-365	AQ5AQ6-KER-SPQ-ARC-NCR-0140 ³⁸²	Glass Handrail	Closed	
AOQ-Exhibit C-366	AQ5AQ6-KER-SPQ-ARC-NCR-0141 ³⁸³	Water Leakage - Ground Floor Soffit	Closed	
AOQ-Exhibit C-367c	AQ5AQ6-KER-SPQ-ARC-NCR-0142 ³⁸⁴	No Proper Installation for WPC for Pergola Elements	Closed	
AOQ-Exhibit C-368	AQ5AQ6-KER-SPQ-ARC-NCR-0143 ³⁸⁵	Water Leakage - Wall behind Planter Box	Closed	
AOQ-Exhibit C-369	AQ5AQ6-KER-SPQ-ARC-NCR-0144 ³⁸⁶	Wall Plaster	Closed	
AOQ-Exhibit C-370	AQ5AQ6-KER-SPQ-ARC-NCR-0145 ³⁸⁷	Water Leakage	Closed	
AOQ-Exhibit C-371	AQ5AQ6-KER-SPQ-ARC-NCR-0146 ³⁸⁸	Water Leakage	Closed	
AOQ-Exhibit C-372	AQ5AQ6-KER-SPQ-ARC-NCR-0147 ³⁸⁹	Using of Unapproved Mulching for Landscape Covering	Closed	
AOQ-Exhibit C-373	AQ5AQ6-KER-SPQ-ARC-NCR-0148 ³⁹⁰	Water Leakage at the Wall	Closed	
AOQ-Exhibit C-374	AQ5AQ6-KER-SPQ-ARC-NCR-0149 ³⁹¹	Severe Water Leak	Not Closed	
AOQ-Exhibit C-375	AQ5AQ6-KER-SPQ-ARC-NCR-0150 ³⁹²	Severe Water Leak	Closed	
AOQ-Exhibit C-376	AQ5AQ6-KER-SPQ-ARC-NCR-0151 ³⁹³	Installation of Floor Finishing with Improper Layout	Closed	
AOQ-Exhibit C-377	AQ5AQ6-KER-SPQ-ARC-NCR-0152 ³⁹⁴	Unacceptable Access Door for MEP Room	Closed	
AOQ-Exhibit C-378	AQ5AQ6-KER-SPQ-ARC-NCR-0153 ³⁹⁵	Using of Improper Stone Surface Finishing	Closed	
AOQ-Exhibit C-379	AQ5AQ6-KER-SPQ-ARC-NCR-0154 ³⁹⁶	Improper Traffic Coat Application	Closed	
AOQ-Exhibit C-380	AQ5AQ6-KER-SPQ-ARC-NCR-0155 ³⁹⁷	SPA Area at L-03	Closed	
AOQ-Exhibit C-381	AQ5AQ6-KER-SPQ-LET-1391 ³⁹⁸	Rectification – Reversed Slope Issue at Shower Room inside Spa Area	AQ5AQ6-SPQ-KER-GEN-LET-1443 ¹⁶⁷	
AOQ-Exhibit C-195	AQ5AQ6-KER-SPQ-LET-1447 ³⁹⁹	Notice for Rectification – Hot Top Mosaic Tile SPA AQ6	AQ5AQ6-SPQ-KER-GEN-LET-1415 ¹⁶⁸	
AOQ-Exhibit C-382	AQ5AQ6-KER-SPQ-LET-1477 ⁴⁰⁰	Notice for Rectification –	AQ3AQ4-SPQ-KER-GEN-LET-1321 ¹⁶⁹	

¹⁶⁷ Exhibit R-125 - Respondent's letter dated 1 December 2021 ref: AQ5AQ6-SPQ-KER-GEN-LET-1443.

¹⁶⁸ Exhibit R-88 - Respondent's letter dated 15 September 2021 ref: AQ5AQ6-SPQ-KER-GEN-LET-1415.

¹⁶⁹ Exhibit R-126 - Respondent's letter dated 30 November 2021 ref: AQ5AQ6-SPQ-KER-GEN-LET-1321.

		Water Leakage at Unit 205 AQ4		
AOQ-Exhibit C-207	AQ5AQ6-KER-SPQ-LET-1478 ⁴⁰¹	Notice for Rectification – Water Leakage at Unit 203 AQ6	AQ5AQ6-SPQ-KER-GEN-LET-1442 ¹⁷⁰	
-			AQ5AQ6-SPQ-KER-GEN-LET-1452 ¹⁷¹	
AOQ-Exhibit C-214	AQ5AQ6-KER-SPQ-LET-1495 ⁴⁰²	Notice for Rectification – Water Leakage from Double Height Ceiling at Reception Area	AQ5AQ6-SPQ-KER-GEN-LET-1451 ¹⁷²	
AOQ-Exhibit C-216	AQ5AQ6-KER-SPQ-LET-1497 ⁴⁰³	Notice for Rectification – Precast Protective Coat Application	Not Closed	
AOQ-Exhibit C-219	AQ5AQ6-KER-SPQ-LET-1500 ⁴⁰⁴	Notice for Rectification – Water Seepage from Bathtub drainage sleeve above flat 1409 AQ6	AQ5AQ6-SPQ-KER-GEN-LET-1459 ¹⁷³	
NCRs Drainage				
	Doc Ref	Subject		
AOQ-Exhibit C-383	AQ5AQ6-MED-SPQ-MEC-NCR-0001 ⁴⁰⁵	DYKA-UPVC pipe fittings installation	Closed	
AOQ-Exhibit C-384	AQ5AQ6-KER-SPQ-MEP-NCR-0004 ⁴⁰⁶	External Drainage Work	Closed	
AOQ-Exhibit C-385	AQ5AQ6-KER-SPQ-MEP-NCR-0007 ⁴⁰⁷	The Storm Water Pipes at Tower (5)	Closed	
AOQ-Exhibit C-386	AQ5AQ6-KER-SPQ-MEP-NCR-0012 ⁴⁰⁸	Garbage Chute of Townhouse 06	Closed	
NCRs Electrical				
-	Doc Ref	Subject		
AOQ-Exhibit C-387	AQ5AQ6-MED-SPQ-ELEC-NCR-0001 ⁴⁰⁹	Concrete Casting Without MEP Clearance	Closed	
AOQ-Exhibit C-388	AQ5AQ6-MED-SPQ-ELEC-NCR-0002 ⁴¹⁰	Installation of cable tray without approved shop drawings.	Closed	
AOQ-Exhibit C-389	AQ5AQ6-KER-SPQ-MEP-ELEC-NCR-0003 ⁴¹¹	Clashing of LV Cable Tray & HVAC Ducting in common Corridor Area @ AQ6	Closed	

¹⁷⁰ Exhibit R-99 - Respondent's letter dated 30 November 2021 ref: AQ5AQ6-SPQ-KER-GEN-LET-1442.

¹⁷¹ Exhibit R-100 - Respondent's letter dated 1 December 2021 ref: AQ5AQ6-SPQ-KER-GEN-LET-1452.

¹⁷² Exhibit R-106 - Respondent's letter dated 1 December 2021 ref: AQ5AQ6-SPQ-KER-GEN-LET-1451.

¹⁷³ Exhibit R-109 - Respondent's letter dated 1 December 2021 ref: AQ5AQ6-SPQ-KER-GEN-LET-1459.

AOQ-Exhibit C-390	AQ5AQ6-KER-SPQ-MEP-ELEC-NCR- 0004 ⁴¹²	Clashing of ELV Cable Tray & HVAC Chilled Water Pipes Near Water Meter Room @ AQ6	Closed	
AOQ-Exhibit C-391	AQ5AQ6-KER-SPQ-ELEC-NCR-0005 ⁴¹³	Usage of Undersize Material	Closed	
AOQ-Exhibit C-392	AQ5AQ6-KER-SPQ-ELEC-NCR-0006 ⁴¹⁴	Un-Authorized Operation of Service Elevator	Closed	
AOQ-Exhibit C-393	AQ5AQ6-KER-SPQ-ELEC-NCR-0007 ⁴¹⁵	Improper Termination or Cancellation of Excess Wall-Wardrobe Lighting Outlets	Closed	
AOQ-Exhibit C-394	AQ5AQ6-KER-SPQ-ELEC-NCR-0008 ⁴¹⁶	Use of Un-Approved Material (Trunking)	Closed	
AOQ-Exhibit C-395	AQ5AQ6-KER-SPQ-ELEC-NCR-0009 ⁴¹⁷	DB Installation for MV Room & Transformer Room Tower 5 & 6	Closed	
AOQ-Exhibit C-396	AQ5AQ6-KER-SPQ-ELEC-NCR-0010 ⁴¹⁸	LED Strips Installation in Apartment TR-3A N-S Tower 5&6	Closed	
AOQ-Exhibit C-397	AQ5AQ6-KER-SPQ-ELEC-NCR-0011 ⁴¹⁹	Unapproved Material Delivered to Site	Closed	
AOQ-Exhibit C-398	AQ5AQ6-KER-SPQ-ELEC-NCR-0012 ⁴²⁰	Parking Light Area	Closed	
AOQ-Exhibit C-399	AQ5AQ6-KER-SPQ-ELEC-NCR-0013 ⁴²¹	Lighting Control System (BMS) for Common Area	Closed	
NCRs Fire Fighting				
-	Doc Ref	Subject		
AOQ-Exhibit C-400	AQ5AQ6-KER-SPQ-MEP-NCR-0009 ⁴²²	Fire Brigade Breeching Inlet	Closed	
AOQ-Exhibit C-401	AQ5AQ6-KER-SPQ-MEP-NCR-0011 ⁴²³	SED Installation	Closed	
AOQ-Exhibit C-402	AQ5AQ6-KER-SPQ-MEP-NCR-0013 ⁴²⁴	Swimming Pool Pump Room for Standard Villa 19	Closed	
AOQ-Exhibit C-403	AQ5AQ6-KER-SPQ-LET-1465 ⁴²⁵	Fire Alarm System	AQ5AQ6-SPQ-KER-GEN-LET-1423 ¹⁷⁴	
AOQ-Exhibit C-404	AQ5AQ6-KER-SPQ-LET-1468 ⁴²⁶	Fire Alarm System	AQ5AQ6-SPQ-KER-GEN-LET-1458 ¹⁷⁵	
AOQ-Exhibit C-405	AQ5AQ6-KER-SPQ-LET-1475 ⁴²⁷	Fire Alarm System Compensation	AQ5AQ6-SPQ-KER-GEN-LET-1437 ¹⁷⁶	
			AQ5AQ6-SPQ-KER-GEN-LET-1458 ¹⁷⁷	
NCRs HSE				
-	Doc Ref	Subject		
AOQ-Exhibit C-406	AQ5AQ6-MED-SPQ-HSE-NCR-0001 ⁴²⁸	House Keeping / Unsafe Condition	Closed	

¹⁷⁴ Exhibit R-127 - Respondent's letter dated 19 October 2021 ref: AQ5AQ6-SPQ-KER-GEN-LET-1423.

¹⁷⁵ Exhibit R-35 - Respondent's letter dated 7 October 2021 ref: AQ5AQ6-SPQ-KER-GEN-LET-1458.

¹⁷⁶ Exhibit R-128 - Respondent's letter dated 14 November 2021 ref: AQ5AQ6-SPQ-KER-GEN-LET-1437.

¹⁷⁷ Exhibit R-35 - Respondent's letter dated 7 October 2021 ref: AQ5AQ6-SPQ-KER-GEN-LET-1458.

AOQ-Exhibit C-407	AQ5AQ6-KER-SPQ-MEP-GEN-NCR- 0001 ⁴²⁹	Improper Storage Material	Closed	
AOQ-Exhibit C-408	AQ5AQ6-MED-SPQ-HSE-NCR-0002 ⁴³⁰	House Keeping	Closed	
AOQ-Exhibit C-409	AQ5AQ6-MED-SPQ-HSE-NCR-0003 ⁴³¹	HSE	Closed	
AOQ-Exhibit C-410	AQ5AQ6-MED-SPQ-HSE-NCR-0004 ⁴³²	Unsafe conditions	Closed	
AOQ-Exhibit C-411	AQ5AQ6-MED-SPQ-HSE-NCR-0005 ⁴³³	Unsafe Condition	Closed	
AOQ-Exhibit C-412	AQ5AQ6-KER-SPQ-HSE-NCR-0005 ⁴³⁴	Barricades	Closed	
AOQ-Exhibit C-413	AQ5AQ6-KER-SPQ-HSE-NCR-0006 ⁴³⁵	Housekeeping	Closed	
AOQ-Exhibit C-414	AQ5AQ6-KER-SPQ-GEN-NCR-0007 ⁴³⁶	HSE	Closed	
AOQ-Exhibit C-415	AQ5AQ6-KER-SPQ-HSE-NCR-0007 Rev.1 ⁴³⁷	Poor House Keeping at Site	Closed	
AOQ-Exhibit C-416	AQ5AQ6-KER-SPQ-HSE-NCR-0008 ⁴³⁸	Barricade (HSE)	Closed	
AOQ-Exhibit C-417	AQ5AQ6-KER-SPQ-HSE-NCR-0009 ⁴³⁹	Housekeeping at Project Boundary	Closed	
AOQ-Exhibit C-418	AQ5AQ6-KER-SPQ-HSE-NCR-0010 ⁴⁴⁰	Poor Housekeeping Associated with Strong Urine Smell	Closed	
AOQ-Exhibit C-419	AQ5AQ6-KER-SPQ-HSE-NCR-0011 ⁴⁴¹	Poor Housekeeping Associated with Strong Urine Smell	Closed	
AOQ-Exhibit C-420	AQ5AQ6-KER-SPQ-HSE-NCR-0012 ⁴⁴²	Dangerous Height Kept without Barricading	Closed	

NCRs/Defect Correspondence HVAC				
-	Doc Ref	Subject		
AOQ-Exhibit C-421	AQ5AQ6-KER-SPQ-MEP-NCR-0001 ⁴⁴³	Closing of HVAC Shaft	Closed	
AOQ-Exhibit C-422	AQ5AQ6-KER-SPQ-MEP-NCR-0002 ⁴⁴⁴	ERU's Plinths	Closed	
AOQ-Exhibit C-423	AQ5AQ6-KER-SPQ-MEP-NCR-0005 ⁴⁴⁵	Branch Duct of Parking Ventilation System	Closed	
AOQ-Exhibit C-424	AQ5AQ6-KER-SPQ-MEP-NCR-0008 ^{R1} ⁴⁴⁶	Smoke Exhaust at Towers Corridors	Closed	
AOQ-Exhibit C-425	AQ5AQ6-KER-SPQ-MEP-NCR-0010 ⁴⁴⁷	Installation of not Approved Materials (Split AC)	Closed	
AOQ-Exhibit C-426	AQ5AQ6-KER-SPQ-LET-1459 ⁴⁴⁸	Compliance to BTU Meter Inspection List of AQ5&6 Faulty Meters	AQ5AQ6-SPQ-KER-GEN-LET-1440 ¹⁷⁸	
AOQ-Exhibit C-427	AQ5AQ6-KER-SPQ-LET-1466 ⁴⁴⁹	Compliance to BTU Meter Inspection List of AQ5&6 Faulty Meters: Reminder No.1	AQ5AQ6-SPQ-KER-GEN-LET-1440 ¹⁷⁹	
AOQ-Exhibit C-428	AQ5AQ6-KER-SPQ-LET-1480 ⁴⁵⁰	Compliance to BTU Meter Inspection List of AQ5&6 Faulty Meters: Reminder No.1	AQ5AQ6-SPQ-KER-GEN-LET-1440 ¹⁸⁰	
NCRs Plumbing				
-	Doc Ref	Subject		
AOQ-Exhibit C-429	AQ5AQ6-MED-SPQ-MEC-NCR-0001 ⁴⁵¹	"Y" Connection Installation Error	Closed	
AOQ-Exhibit C-430	AQ5AQ6-MED-SPQ-MEP-NCR-0002 ⁴⁵²	Improper Storage for Materials on Yard	Closed	

178 Exhibit R-129 - Respondent's letter dated 20 November 2021 ref: AQ5AQ6-SPQ-KER-GEN-LET-1440.

179 Exhibit R-129 - Respondent's letter dated 20 November 2021 ref: AQ5AQ6-SPQ-KER-GEN-LET-1440.

180 Exhibit R-129 - Respondent's letter dated 20 November 2021 ref: AQ5AQ6-SPQ-KER-GEN-LET-1440.

AOQ-Exhibit C-431	AQ5AQ6-KER-SPQ-MEP-NCR-0003 ⁴⁵³	Drainage	Closed	
AOQ-Exhibit C-432	AQ5AQ6-KER-SPQ-MEP-NCR-0006 ⁴⁵⁴	External Services for AQ 5	Closed	
NCRs/Defect Correspondence Structural				
-	Doc Ref	Subject		
AOQ-Exhibit C-433	AQ5AQ6-MED-SPQ-STR-NCR-0002 ⁴⁵⁵	Blinding Concrete	Closed	
AOQ-Exhibit C-434	AQ5AQ6-MED-SPQ-STR-NCR-0003 ⁴⁵⁶	Water bar Junction detail	Closed	
AOQ-Exhibit C-435	AQ5AQ6-MED-SPQ-STR-NCR-0004 ⁴⁵⁷	Reinforcement Works	Closed	
AOQ-Exhibit C-436	AQ5AQ6-MED-SPQ-STR-NCR-0005 ⁴⁵⁸	Steel Store on Soil	Closed	
AOQ-Exhibit C-437	AQ5AQ6-MED-SPQ-STR-NCR-0006 ⁴⁵⁹	Structural shop drawing schedule	Closed	
AOQ-Exhibit C-438	AQ5AQ6-MED-SPQ-STR-NCR-0007 ⁴⁶⁰	Damaged PVC Membrane	Closed	
AOQ-Exhibit C-439	AQ5AQ6-MED-SPQ-STR-NCR-0008 ⁴⁶¹	Concreting done without Work Inspection Request (WIR)	Closed	
AOQ-Exhibit C-440	AQ5AQ6-MED-SPQ-STR-NCR-0009 ⁴⁶²	Pouring Concrete without WIR Approval	Closed	
AOQ-Exhibit C-441	AQ5AQ6-MED-SPQ-STR-NCR-0010 ⁴⁶³	Beam Rebar Details	Closed	
AOQ-Exhibit C-442	AQ5AQ6-MED-SPQ-STR-NCR-0011 ⁴⁶⁴	Waterproofing	Closed	
AOQ-Exhibit C-443	AQ5AQ6-MED-SPQ-STR-NCR-0012 ⁴⁶⁵	Walls and Columns Concreting	Closed	
AOQ-Exhibit C-444	AQ5AQ6-MED-SPQ-STR-NCR-0013 ⁴⁶⁶	Reinforcement Works	Closed	
AOQ-Exhibit C-445	AQ5AQ6-MED-SPQ-STR-NCR-0014 ⁴⁶⁷	Reinforcement / Concrete works	Closed	
AOQ-Exhibit C-446	AQ5AQ6-MED-SPQ-STR-NCR-0015 ⁴⁶⁸	Concrete Boom Installation	Closed	
AOQ-Exhibit C-447	AQ5AQ6-MED-SPQ-STR-NCR-0016 ⁴⁶⁹	Twisted Wall	Closed	
AOQ-Exhibit C-448	AQ5AQ6-MED-SPQ-STR-NCR-0017 ⁴⁷⁰	Vertical alignment for the wall side	Closed	
AOQ-Exhibit C-449	AQ5AQ6-MED-SPQ-STR-NCR-0018 ⁴⁷¹	Bad Housekeeping	Closed	
AOQ-Exhibit C-450	AQ5AQ6-MED-SPQ-STR-NCR-0019 ⁴⁷²	Hot Weather Concreting	Closed	
AOQ-Exhibit C-451	AQ5AQ6-MED-SPQ-STR-NCR-0020 ⁴⁷³	Poor Planning and Control	Closed	
AOQ-Exhibit C-452	AQ5AQ6-MED-SPQ-STR-NCR-0021 ⁴⁷⁴	Shrinkage Cracks in Slab	Closed	
AOQ-Exhibit C-453	AQ5AQ6-MED-SPQ-STR-NCR-0022 ⁴⁷⁵	AQ5 L04 Concreting	Closed	
AOQ-Exhibit C-454	AQ5AQ6-MED-SPQ-STR-NCR-0023 ⁴⁷⁶	Concrete defects (Verticality, alignment and twisted)	Closed	
AOQ-Exhibit C-455	AQ5AQ6-MED-SPQ-STR-NCR-0024 ⁴⁷⁷	Poor Workmanship-Concrete Structure Vertical	Closed	
AOQ-Exhibit C-456	AQ5AQ6-MED-SPQ-STR-NCR-0025 ⁴⁷⁸	Poor Workmanship-Concrete Structure Vertical Alignment	Closed	
AOQ-Exhibit C-457	AQ5AQ6-MED-SPQ-STR-NCR-0026 ⁴⁷⁹	Poor Workmanship-Concrete Structure Vertical Alignment	Closed	
AOQ-Exhibit C-458	AQ5AQ6-MED-SPQ-STR-NCR-0027 ⁴⁸⁰	Poor Workmanship-Concrete Defects (Vertical Alignment and Twisted)	Closed	
AOQ-Exhibit C-459	AQ5AQ6-MED-SPQ-STR-NCR-0028 ⁴⁸¹	Poor Workmanship-Concrete Defects (Vertical Alignment and Twisted)	Closed	
AOQ-Exhibit C-460	AQ5AQ6-MED-SPQ-STR-NCR-0029 ⁴⁸²	Slab corner edges is casted without comply with shop drawing	Closed	

AOQ-Exhibit C-461	AQ5AQ6-MED-SPQ-STR-NCR-0030 ⁴⁸³	Retaining Wall Backfilling	Closed	
AOQ-Exhibit C-462	AQ5AQ6-MED-SPQ-STR-NCR-0031 ⁴⁸⁴	Cement Board Cladding	Closed	
AOQ-Exhibit C-463	AQ5AQ6-MED-SPQ-STR-NCR-0032 ⁴⁸⁵	Finishing of Concrete Surface with Poor Quality	Closed	
AOQ-Exhibit C-464	AQ5AQ6-MED-SPQ-STR-NCR-0033 ⁴⁸⁶	Wall Non-Alignment	Closed	
AOQ-Exhibit C-465	AQ5AQ6-MED-SPQ-STR-NCR-0034 ⁴⁸⁷	Main Reinforcement Planted Without the Chemical Material	Closed	
AOQ-Exhibit C-466	AQ5AQ6-MED-SPQ-STR-NCR-0035 ⁴⁸⁸	Alignment in Walls out of tolerance	Closed	
AOQ-Exhibit C-467	AQ5AQ6-MED-SPQ-STR-NCR-0036 ⁴⁸⁹	Alignment in T6W4out of Tolerance	Closed	
AOQ-Exhibit C-468	AQ5AQ6-MED-SPQ-STR-NCR-0037 ⁴⁹⁰	Unsatisfactory Compression Test Result	Closed	
AOQ-Exhibit C-469	AQ5AQ6-MED-SPQ-STR-NCR-0038 ⁴⁹¹	Cranking of Rebar	Closed	
AOQ-Exhibit C-470	AQ5AQ6-MED-SPQ-STR-NCR-0039 ⁴⁹²	Dewatering Failure	Closed	
AOQ-Exhibit C-471	AQ5AQ6-MED-SPQ-STR-NCR-0040 ⁴⁹³	Staircase beam out of tolerance	Closed	
AOQ-Exhibit C-472	AQ5AQ6-MED-SPQ-STR-NCR-0041 ⁴⁹⁴	Waterproofing / Backfilling	Closed	
AOQ-Exhibit C-473	AQ5AQ6-MED-SPQ-STR-NCR-0042 ⁴⁹⁵	Major Shifting for Staircase beam	Closed	
AOQ-Exhibit C-474	AQ5AQ6-MED-SPQ-STR-NCR-0043 ⁴⁹⁶	Retractable Loading Platform	Closed	
AOQ-Exhibit C-475	AQ5AQ6-MED-SPQ-STR-NCR-0044 ⁴⁹⁷	Defects on Placed Concrete for Tanks	Closed	
AOQ-Exhibit C-476	AQ5AQ6-MED-SPQ-STR-NCR-0045 ⁴⁹⁸	Tower 6 Beam staircase between level 3 & level 4	Closed	
AOQ-Exhibit C-477	AQ5AQ6-MED-SPQ-STR-NCR-0046 ⁴⁹⁹	Use of Block Wall as Retaining without M.S	Closed	
AOQ-Exhibit C-478	AQ5AQ6-MED-SPQ-STR-NCR-0047 ⁵⁰⁰	Shrinkage Cracks in Slab	Closed	
AOQ-Exhibit C-479	AQ5AQ6-MED-SPQ-STR-NCR-0048 ⁵⁰¹	Precast Panel installation for AQ6-3P-19	Closed	
AOQ-Exhibit C-480	AQ5AQ6-MED-SPQ-STR-NCR-0049 ⁵⁰²	Precast Panel	Closed	
AOQ-Exhibit C-481	AQ5AQ6-MED-SPQ-STR-NCR-0050 ⁵⁰³	Precast Panel-Concrete Corbel Shim Pack	Closed	
AOQ-Exhibit C-482	AQ5AQ6-MED-SPQ-STR-NCR-0051 ⁵⁰⁴	Precast Panel works	Closed	
AOQ-Exhibit C-483	AQ5AQ6-KER-SPQ-STR-NCR-0052 ⁵⁰⁵	AQ5- Swimming Pool at Level 3	Closed	
AOQ-Exhibit C-484	AQ5AQ6-KER-SPQ-STR-NCR-0053 ⁵⁰⁶	AQ5-Staircase (Gridline TH.C-THD-TH2-TH7)	Closed	
AOQ-Exhibit C-485	AQ5AQ6-KER-SPQ-STR-NCR-0054 ⁵⁰⁷	Remaining Wall of Domestic Water Tank	Closed	
AOQ-Exhibit C-486	AQ5AQ6-KER-SPQ-STR-NCR-0055 ⁵⁰⁸	Seepage Water Leakage at the Basement Slab	Closed	
AOQ-Exhibit C-487	AQ5AQ6-KER-SPQ-STR-NCR-0056 ⁵⁰⁹	Cracks on Slab (First Floor Slab)	Closed	
AOQ-Exhibit C-488	AQ5AQ6-KER-SPQ-STR-NCR-0057 ⁵¹⁰	Honeycomb on Column (Lower roof to upper roof)	Closed	
AOQ-Exhibit C-489	AQ5AQ6-KER-SPQ-STR-NCR-0058 ⁵¹¹	Honeycomb on Staircase (Ground to First Floor)	Closed	
AOQ-Exhibit C-490	AQ5AQ6-KER-SPQ-STR-NCR-0059 ⁵¹²	Honeycomb on Staircase - (First Floor-Roof Floor)	Closed	
AOQ-Exhibit C-491	AQ5AQ6-KER-SPQ-STR-NCR-0060 ⁵¹³	Staircase - Town House (L04 to L05)	Closed	
AOQ-Exhibit C-492	AQ5AQ6-KER-SPQ-STR-NCR-0061 ⁵¹⁴	Staircase Casted - Town House (L03 to L05)	Closed	
AOQ-Exhibit C-493	AQ5AQ6-KER-SPQ-STR-NCR-0062 ⁵¹⁵	Staircase - Town House (L02-L03)	Closed	
AOQ-Exhibit C-494	AQ5AQ6-KER-SPQ-STR-NCR-0063 ⁵¹⁶	Staircase - Town House (L02-L03)	Closed	

AOQ-Exhibit C-495	AQ5AQ6-KER-SPQ-STR-NCR-0064 ⁵¹⁷	Staircase - Town House (L04-L07)	Closed	
AOQ-Exhibit C-496	AQ5AQ6-KER-SPQ-STR-NCR-0065 ⁵¹⁸	Staircase	Closed	
AOQ-Exhibit C-497	AQ5AQ6-KER-SPQ-STR-NCR-0066 ⁵¹⁹	Staircase - Town House (L03-L05)	Closed	
AOQ-Exhibit C-498	AQ5AQ6-KER-SPQ-STR-NCR-0067 ⁵²⁰	Extension of Slab 200mm from existing Slab	Closed	
AOQ-Exhibit C-499	AQ5AQ6-KER-SPQ-STR-NCR-0068 ⁵²¹	Staircase	Closed	
AOQ-Exhibit C-500	AQ5AQ6-KER-SPQ-STR-NCR-0069 ⁵²²	Podium (Level 3 - Upstand Wall Honeycomb with Expose Rebars)	Closed	
AOQ-Exhibit C-501	AQ5AQ6-KER-SPQ-STR-NCR-0070 ⁵²³	Soil Backfilling	Closed	
AOQ-Exhibit C-502	AQ5AQ6-KER-SPQ-STR-NCR-0071 ⁵²⁴	Soffit Honeycomb	Closed	
AOQ-Exhibit C-503	AQ5AQ6-KER-SPQ-STR-NCR-0072 ⁵²⁵	Installation of Precast Stormwater Manholes	Closed	
AOQ-Exhibit C-504	AQ5AQ6-KER-SPQ-STR-NCR-0073 ⁵²⁶	Rebar of Major have been Exposed	Closed	
AOQ-Exhibit C-505	AQ5AQ6-KER-SPQ-STR-NCR-0074 ⁵²⁷	Clear Height at the Staircase ST-PO-01 is not per Approved Shop Drawing	Closed	
AOQ-Exhibit C-506	AQ5AQ6-KER-SPQ-STR-NCR-0075 ⁵²⁸	Water Leakage from Walls and Ceiling	Not Closed	
AOQ-Exhibit C-507	AQ5AQ6-KER-SPQ-STR-NCR-0076 ⁵²⁹	Door Height Issue at the Unit Main Entrance	Closed	
AOQ-Exhibit C-508	AQ5AQ6-KER-SPQ-STR-NCR-0077 ⁵³⁰	Water Leakage inside Lift Pit	Closed	
AOQ-Exhibit C-509	AQ5AQ6-KER-SPQ-STR-NCR-0078 ⁵³¹	Water Leakage inside Lift Pit	Not Closed	
AOQ-Exhibit C-510	AQ5AQ6-KER-SPQ-STR-NCR-0079 ⁵³²	Water Leakage inside Lift Pit	Not Closed	
AOQ-Exhibit C-36	AQ5AQ6-KER-SPQ-LET-1487 ⁵³³	Notice for Rectification – Back Props at Basement Level AQ6	Not Closed	
AOQ-Exhibit C-215	AQ5AQ6-KER-SPQ-LET-1496 ⁵³⁴	Notice for Rectification – Back Props at Basement Level AQ6 Reminder No. 1	Not Closed	

137 In almost every event the non-conformance notice had been closed and signed off by the Engineer as appears from the Claimant's own exhibits.

138 The Respondent will in due course in evidence illustrate the unreasonableness of the Engineer and that the Respondent nonetheless attended to all notices given by the Engineer. The Respondents position is thus that the allegation that the Respondent did not comply with its contractual and legal obligations to remedy defects is without merit.¹⁸¹

139 To the extent that the Claimant suggests in paragraphs 9.3 and 9.4 of the Statement of Claim that defects were notified after the apartments, townhouses and villas had

¹⁸¹ Exhibit R-130 – AQ5AQ6 Defect notification log dated 4 October 2022.

been handed over but were not attended to by the Respondent, the Respondent refers to its defects rectification log, identifying all defects notified after handing over and the dates and times when those defects were duly attended to.

Rectification of Repairs of Notified Defects

140 The Claimant relies on works summarised in Schedule 1 to the Statement of Claim and alleges that this comprised remedial work to defects in occupied premises, which defects had been notified to the Respondent.

141 The Respondents position is that:

141.1 Numerous of the items raised arose from other work undertaken and not from the Respondent's works;

141.2 Certain items were not included within the Respondent's scope of work;

141.3 The remaining items were never notified to the Respondent.

142 The Claimant has purported to set out the amounts which it claims under this heading in Schedule 1 to the Statement of Claim. The Respondent has replicated that Schedule 1 below but has added a column on the right in which it comments on each of the defects supposedly notified and not attended to, and where appropriate references the Respondent's correspondence.

Schedule 1: Costs of Remedying Defective & Incomplete Work					
Item No.	Description	Notification to Respondent	Contractors	Amount (QAR)	SPQ reply
Condensation Issues (NB this issue remains ongoing and cost of repair will increase)					
1	Condensation issue in apartments in both tower due to poor workmanship by SPQ. Humidity issue in some apartments started due to improper closing of above ceiling, riser opening and gaps in the	Selection only: AQ5AQ6-KER-SPQ-LET-1404, 12 July 2021 ⁶²¹ AQ5AQ6-KER-SPQ-LET-1418, 19 July 2021 ⁶²² AQ5AQ6-KER-SPQ-LET-1414, 27 July 2021 ⁶²³ AQ5AQ6-KER-SPQ-LET-1430, 10 August 2021 ⁶²⁴ AQ5AQ6-KER-SPQ-LET-1492, 16 December 2021 ⁶²⁵	Roan Piegion Al Rashid IRA R Square Chemparts	1,397,500	SPQ has verified and taken necessary action where were applicable as requested by engineer/employer. Also wherever access was provided SPQ checked and corrected the issues. Further no access given to

	doors.				SPQ for checking. Contractor will not liable to any modification /alteration work carried out by the employer beyond the scope of the Main Contractor.
2	External cladding, aluminium fittings gap sealing with sealant by BMU operation due to hot air passing to the apartment and condensation issue	Selection only: AQ5AQ6-KER-SPQ-LET-1404, 12 July 2021 ⁶²⁶ AQ5AQ6-KER-SPQ-LET-1418, 19 July 2021 ⁶²⁷ AQ5AQ6-KER-SPQ-LET-1414, 27 July 2021 ⁶²⁸ AQ5AQ6-KER-SPQ-LET-1430, 10 August 2021 ⁶²⁹ AQ5AQ6-KER-SPQ-LET-1470, 31 October 2021 ⁶³⁰ AQ5AQ6-KER-SPQ-LET-1492, 16 December 2021 ⁶³¹	Piegon Contracting	400,000	SPQ has done all the sealant work as per the scope of work, kernel/Facility management has verified in snag and DE snag accordingly. Contractor will not liable to any modification /alteration work carried out by the employer beyond the scope of the Main Contractor.
3	Common area condensation issues – damage to the ceilings and black mould formation.	Selection only: AQ5AQ6-KER-SPQ-LET-1404, 12 July 2021 ⁶³² AQ5AQ6-KER-SPQ-LET-1492, 16 December 2021 ⁶³³	IRA	96,000	SPQ has verified and taken necessary action where were applicable as requested by engineer/employee. Also wherever access was provided SPQ checked and corrected the issues. Contractor will not liable to any modification /alteration work carried out by the employer beyond the scope of the Main Contractor.
Miscellaneous issues (by value)					
4	Progress payment made to Arabian Gulf Melco for the testing & commissioning and handing over of 28 no's of Mitsubishi elevators for AQ5 & AQ6	Selection only: EMQ001500/CCD/MI/018, 21 November 2021 ⁶³⁴	Arabian Gulf Melco Elevator	839,905	SPQ handed over the elevators and not asked employer to pay them as payment was not due and no information given to SPQ. For what purpose they paid this money to subcontractor, SPQ is not aware of. Also Claimant never informed SPQ that they were paying to subcontractor.

5	Handover, testing & commissioning of the following: - CCTV system, - access control system, - structured cabling for data & voice (copper & fiber optics), - intercom system, - cisco active components systems, - cisco IP Telephone System.	Selection only: LTR-CL-ALORAIQ-005, 5 December 2021 ⁶³⁵	Cleopatra Technology W.L.L.	499,209	SPQ handed over the elevators and not asked employer to pay them as payment was not due and no information given to SPQ. For what purpose they paid this money to subcontractor, SPQ is not aware of. Also Claimant never informed SPQ that they were paying to subcontractor.
6	Installation of swimming pool water chiller system.	AQ5AQ6-KER-SPQ-LET-1402, 28 June 2021 ⁶³⁶	Al Rashid Trading	180,000	Not is SPQ scope, SPQ has carried out installation as per the scope of work. Contractor will not liable to any modification /alteration work carried out by the employer beyond the scope of the Main Contractor.
7	Testing & commissioning with graphics for Building Management System and FCU's.	AQ5AQ6-KER-SPQ-LET-1190, 30 September 2020 ⁶³⁷ AQ5AQ6-KER-SPQ-LET-1451, 15 September 2021 ⁶³⁸ AQ5AQ6-KER-SPQ-LET-1453, 3 October 2021 ⁶³⁹ AQ5AQ6-KER-SPQ-LET-1464, 14 October 2021 ⁶⁴⁰ AQ5AQ6-KER-SPQ-LET-1474, 10 November 2021 ⁶⁴¹	Qatar Masters	165,000	SPQ has requested to provide access to complete the pending commissioning work and engineer/ employer has not provided yet and refused to provide the same. SPQ has completed the works and for final commissioning no access provided to plant rooms
8	Supply, installation, testing & commissioning of fire alarm system.	AQ5AQ6-KER-SPQ-LET-1465, 14 October 2021 ⁶⁴² AQ5AQ6-KER-SPQ-LET-1468, 20 October 2021 ⁶⁴³ AQ5AQ6-KER-SPQ-LET-1475, 10 November 2021 ⁶⁴⁴	Fire Link	139,176	SPQ handed over the system and no notification given to SPQ for this work. Also QCDD inspection done successfully
9	Supply of BMS materials	AQ5AQ6-KER-SPQ-LET-1190, 30 September 2020 ⁶⁴⁵ AQ5AQ6-KER-SPQ-LET-1451, 15 September 2021 ⁶⁴⁶	Qatar Masters	100,512	SPQ has requested to provide access to complete the pending commissioning

		AQ5AQ6-KER-SPQ-LET-1453, 3 October 2021 ⁶⁴⁷ AQ5AQ6-KER-SPQ-LET-1464, 14 October 2021 ⁶⁴⁸ AQ5AQ6-KER-SPQ-LET-1474, 10 November 2021 ⁶⁴⁹			work and engineer/ employer has not provided yet and refused to provide the same
10	Payment for flat preparation and painting works for handover in Towers AQ5 & AQ6 as follows:- supply and installation of cement partition work including painting work for AQ5 Flat No - 3109.- repairing and applying 2 coats of repainting to all ground floor common area walls and ceilings.- repairing and applying 2 coats of epoxy repainting and decorative paint for all ground floor common areas and lift area walls.		ROAN	48,330	All DE snagging and handover done by SPQ. Damages done by others during shifting is not in SPQ scope. SPQ will not be liable to any modification /alteration works carried out by the employer.
11	Payment for applying waterproofing at level 3 planter box near the swimming pool area; fixing of drainage pipe and backfill the soil. Supply and installation of granite near the swimming pool area at AQ5 & AQ6.	AQ5AQ6-KER-SPQ-LET-1488, 7 December 2021 ⁶⁵⁰	Piegon Contracting	48,000	Employer did modification to the existing and this may even lead to leakages on below slab, SPQ will not be liable to any modification /alteration works carried out by the employer. No information to SPQ
12	Supply & installation of doors and louvers	AQ5AQ6-KER-SPQ-LET-0952, 15 January 2020 ⁶⁵¹	Optimer Trading	43,750	SPQ has carried out installation as per the scope of work and approved shop drawing. Doors changed at site and now not as per the approved QCDD plan. Contractor will not liable to any modification /alteration work carried out by the employer beyond the scope of the Main Contractor.

13	Payment for Damaged Marble Removing and new Marble refixing and other civil work for AQ5 & AQ6 in the following areas: - Level 3 swimming pool area - Level 3 gym entrance area - Tower AQ6 reception area - Townhouse AQ 5 apt no. – 601 - Tower AQ 5 basement area	AQ5AQ6-KER-SPQ-LET-1280, 16 January 2021 ⁶⁵²	Piegon Contracting	31,600	No information to SPQ and SPQ will not be liable to any modification /alteration works carried out by the employer.
14	Cooling complaints within many apartments. Required repairs due to poor performance of FCU and ducting issues.	AQ5AQ6-KER-SPQ-LET-1139, 13 August 2020 ⁶⁵³ AQ5AQ6-KER-SPQ-LET-1140, 13 August 2020 ⁶⁵⁴	Chemparts doha	30,500	SPQ has verified the system as per the project specification and the cooling temperature has been tested and verified by the kernel engineer as per project specification.
15	Payment for waterproofing, chemical injection, pipeline leak rectification in 2nd level podium within AQ5 & AQ6. Water leakages from the amenity level to 2nd floor podium parking.	AQ5AQ6-KER-SPQ-LET-1477, 15 November 2021 ⁶⁵⁵ AQ5AQ6-KER-SPQ-LET-1478, 15 November 2021 ⁶⁵⁶ AQ5AQ6-KER-SPQ-LET-1488, 7 December 2021 ⁶⁵⁷	Piegon Contracting	30,000	Not informed to SPQ and Contractor will not be liable to any modification /alteration works carried out by the employer.
16	Supply and installation of actuator neptronic-bacnet EVC for villa AHU actuator (MODEL EVCB14NIT2S)	AQ5AQ6-KER-SPQ-LET-1194, 8 September 2020 ⁶⁵⁸ AQ5AQ6-KER-SPQ-LET-1188, 28 September 2020 ⁶⁵⁹	Tech Hans Air	17,640	SPQ has carried out the installation per the project specification. Contractor will not be liable to any modification /alteration works carried out by the employer.
17	Rectification works required in AQ5&AQ6 spa bathrooms/toilets for the reversed slope in tiles and skirting issues.	AQ5AQ6-KER-SPQ-LET-1391, 9 June 2021 ⁶⁶⁰	Piegon Contracting	4,000	SPQ has already done necessary rectification as per scope and the same verified by the kernel engineer. SPQ will not be liable to any modification /alteration works carried out by the employer.

18	Supply & installation of riser GI duct re-insulation works at Tower AQ 5 Flat No.3703.	AQ5AQ6-KER-SPQ-LET-1418, 27 July 2021 ⁶⁶¹	Al Rashid Trading	4,000	SPQ has carried out the installation per the project specification and verified by the engineer/Facility management . Contractor will not be liable to any modification /alteration works carried out by the employer.
TOTAL AMOUNT			4,075,122		

143 The Respondent in any event points out that the remedial work in question is very small when seen in the context of the project as a whole. The Claimant further alleges that it was required to temporarily rehouse tenants (in the Hilton hotel) and pay compensation. The Respondent has no knowledge of these events and denies any liability therefor.

Condensation Defects

144 The Claimant, in paragraph 8.4 through to paragraph 8.18 suggests that the condensation difficulties experienced are the result of the Respondent having failed to carry out the works correctly or according to specification. This is denied.

145 All works completed by the Respondent on the project including in relation to the works referenced by the Claimant, were completed under the supervision of the Engineer and in accordance with the relevant work inspection approval requirements.

146 Consequently:

146.1 All insulation work to the air-conditioning ducts were completed per project specification and verified by the Engineer;

146.2 All the chilled water pipe insulation work was completed according to project specifications and verified by the Engineer.

147 Thereafter, and during the course of final snagging and the defect evaluation process, the proper completion and compliance with all specifications of the works were re-

verified by the Engineer together with the Claimant's facilities manager, prior to taking over the works.

148 In addition to these approvals and verifications, the works were handed over by verifying the internal room temperatures as per the required design by both the Engineer and the Claimant's facilities manager. The same applies to all ceiling and insulation works.

149 The Engineer thereafter addressed correspondence to the Respondent purporting to notify the Respondent of defects causing condensation, referring to and relying upon evaluation reports provided by the Claimant's facilities manager. The Respondent takes issue with the reports prepared by the facilities manager, who is not in the position to provide any technical evaluation.

150 Nonetheless, the Respondent inspected the areas identified by the Engineer and again verified that all gaps and penetrations forming part of the sealant works complied with the required project specifications. This was recorded by the Respondent in correspondence to the Engineer.¹⁸²

151 Thereafter, the Claimant appointed third party contractors to undertake various alterations and modifications of the sites, without any technical evaluation and without either notifying or seeking the consent of the Respondent. All such modifications were undertaken in areas which had already been handed over to the Claimant, inspected and signed off by the Engineer and the snagging and de-snagging process completed.

152 It is also came to the Respondent's attention that the Claimant had engaged third party contractors for alteration and modification of external sealant works which had

¹⁸²

Exhibit R-340 – Engineer's letter – ref: AQ5AQ6-KER-SPQ-LET-1404.
Exhibit R-341 – Engineer's letter – ref: AQ5AQ6-KER-SPQ-LET-1414.
Exhibit R-342 – Engineer's letter – ref: AQ5AQ6-KER-SPQ-LET-1418.
Exhibit R-343 – Engineer's letter – ref: AQ5AQ6-KER-SPQ-LET-1430.
Exhibit R-344 – Engineer's letter – ref: AQ5AQ6-KER-SPQ-LET-1492.
Exhibit R-345 – Respondent's letter to the Engineer – ref: AQ5AQ6-KER-SPQ-LET-1392.
Exhibit R-346 – Respondent's letter to the Engineer – ref: AQ5AQ6-KER-SPQ-LET-1427.
Exhibit R-347 – Respondent's letter to the Engineer – ref: AQ5AQ6-KER-SPQ-LET-1457.

not been notified to the Respondent and in which the Respondent was not at all involved. The works by those third party contractors caused damage to existing sealant which had been applied by the Respondent.

153 To the extent that the Respondent in paragraph 8.10 and onwards seeks to rely on reports from the Claimant's facilities manager (Exhibit AKY-C-529 to the Statement of Claim), the Respondent takes issue with those reports. The reports were not prepared by technically qualified individuals and failed to take into account the consequences of the various works undertaken by third party contractors.

154 The Respondent has also noted that in the common parking areas and lobbies, the Claimant has kept lift lobby doors open whilst maintaining full operation of the air-conditioning system, which can itself lead to condensation and other damage to the system.

155 The Respondent received a few minor notifications reporting condensation in the apartments. Those complaints were resolved with minor corrections to the MEP installation.

156 Consequently, the Respondent's position is that:

156.1 It complied with and completed the work in accordance with all project specifications;

156.2 The works were duly signed off by the Engineer and the facilities manager;

156.3 The works were snagged and de-snagged and completed;

156.4 Any difficulties now experienced is not related to the Respondent's works but to works undertaken by third party contractors without the consent or approval of the Respondent

Water Ingress

157 The Claimant foreshadows a complaint about defective workmanship causing water ingress from the podium and water ingress into the basement, in paragraph 115(a) of the Statement of Claim. Its claim for payment of damages for rectification of the

damages caused by water ingress is set out in paragraphs 9.7 to 9.10 of the Statement of Claim.

158 The Respondent denies any liability and in this regard the Respondent's position is as follows:

158.1 The basement water proofing works were undertaken as a compartment water proofing system which means that if any leakage takes place, it will take place through the injection boxes of that compartment. The approved method statement stipulates a procedure for attending to any leakages and that procedure has been duly followed by the Respondent.¹⁸³

158.2 Some leakage was observed through a few of the injection boxes and those leakages were duly attended to. The current position is that the car park basement is free of any damage or defect.¹⁸⁴

158.3 The works on the podium deck were carried out in accordance with project specifications, under the supervision of the Engineer and all defects which were notified by the Engineer under the Respondent's Scope of Work have been attended to.

158.4 However, after the works had been handed over, the Claimant carried out several alterations and modifications at the podium area.¹⁸⁵ No notice of such works was given to the Respondent and no technical evaluation was sought from the Respondent. Instead, those works were carried out by other contractors, without the Respondent's involvement.

158.5 The Claimant also made changes on the upper floor which resulted in damage to the water proofing. Those works were undertaken by another contractor, without the involvement of the Respondent.

¹⁸³ Exhibit R-121 – Method Statement for the construction and remedial works to basement water proofing.

¹⁸⁴ Exhibit R-122 – Photographs of the current state of the basement parking.

¹⁸⁵ Exhibit R-123 – Photographs of alteration works carried out by the Claimant to the podium deck area.

- 158.6 The Claimant also changed the swimming pool lights and evidently insufficient care was taken as a result of which the lights were not properly sealed, allowing water to leak through these areas.
- 158.7 The Claimant has appointed a third party contractor to undertake remedial works. However, that contractor has caused damage to the expansion joints to remedy the leakages from underneath, have caused further damage to the joints. Consequently, the cause of the water ingress and subsequent damage is related to the Claimant's decision to use third party contractors without the involvement of the Respondent, who were negligent and caused damage to water proofing and joints allowing such water ingress to take place.
- 159 The Claimant alleges in paragraph 9.7 that the investigation of the defects and the remedial work is on hold, pending the completion of the football world cup tournament. This is incorrect as there are ongoing works taking place and there is no impediment to any such works taking place at such time.
- 160 The Claimant seeks extraordinary relief in that it complains that the investigations into the cause of the water ingress may not be complete by the time that an Award is issued in this Arbitration and consequently wants a blanket indemnity from the Respondent for any damage that may occur by virtue of water ingress, costs of repairing or maintaining the property, and wants such relief without reference to any length of time or the actual cause of such water ingress. The Respondent denies that the Claimant is entitled to any such relief either contractually or as a matter of law.
- 161 In paragraph 9.10 of the Statement of Claim, the Claimant refers to apparent water ingress affect the spa water feature and the spa hot-tub causing damage to the adjacent apartment. The Claimant again seeks relief against the Respondent and seeks the extraordinary remedy of a blanket indemnity.
- 162 The Respondent's position is:
- 162.1 All the work in that area was completed and certified by the Engineer;

- 162.2 The Claimant took occupation of the areas following several inspections by both the Engineer and the Claimant's Facility Managers.
- 162.3 All systems involved including the water feature and the hot-tub were completed under supervision of the Engineer following the work inspection request approval process.
- 162.4 The Claimant has engaged third party contractors to undertake xxx and modifications in the area and has done so either without notifying the Respondent or seeking its involvement. Any water ingress or associated damage was caused by such modification works.

Outstanding Works

- 163 In paragraph 9.26 the Claimant asserts a claim for work which it contends was not completed by the Respondent in respect of which it notified the Respondent. Although it makes no effort to particularise this claim, it relies on Schedule 3 to the Statement of Claim which purports to set out the work supposedly outstanding, Engineer's notifications and the estimated costs of repair (although some items have not been quantified).
- 164 The Respondent replicates Schedule 3 below with the addition of 3 further columns which contain:
- 164.1 the Respondent's evaluation of any works required to attend to the issue in question;
- 164.2 the Respondent's comments on its liability for such defects;
- 164.3 where relevant, a reference to the Respondent's correspondence addressed to the Engineer, disposing of the complaint.

Item	Description of Work/Activity Outstanding	Current Condition	Notification Reference No.	Remarks	Estimated Cost QAR	SPQ amount	Remarks	Reference no
1	Outstanding water leakage rectification works at 2nd level	No action from SPQ to date	AQ5AQ6-KER- SPQ-LET-1485, dated 30 November 2021 ⁶⁶²	-	TBC	0.00	Rectification has been carried out as per the scope of contractor	

	of the podium: Due to the improper execution for the waterproofing works at L03, water leakage is occurring from both the planter boxes at the irrigation drain points and from the swimming pool.						and project specification. Thereafter the employer has carried out several alteration and modification which is leading to leakage.	
2	Water leakages from spa water features and hot tub: Water leakages occurred from the spa water features and hot tub. These leakages caused water leakages within apartment 205.	SPQ undertook limited works which did not resolve the issue.	AQ5AQ6-KER- SPQ-LET-1477, dated 15 November 2021 ⁶⁶³	-	TBC	0.00	With Ref letter :AQ5 AQ6-KER-SPQ-LET-1477 the issued reported is for AQ4-T4-205 which has been verified and closed with letter Ref:AQ3AQ4-SPQ-KER-GEN-LET-1462	AQ3AQ4-SPQ-KER-GEN-LET-1462 ¹⁸⁶
3	Precast façade repairing and protective coat application for T5, T6, TH5, and TH6: Protective coat which is intended to make the precast cladding panels weather tight to extend the precast cladding lifetime has not been applied.	No action from SPQ to date	AQ5AQ6-KER- SPQ-LET-1497, dated 29 January 2022 ⁶⁶⁴	-	1,350,000	0.00	SPQ installed factory finished panel and further coating not required	
4	Water leakage and water pressure stabilization issue at standard villas: due to the water leakage in the firefighting line feeding the fire hydrants at the front of the standard villas, which led to continuousl	No action from SPQ to date	AQ5AQ6-KER- SPQ-LET-1489, dated 7 December 2021 ⁶⁶⁵	Claimant intends to undertake work after World Cup (March 2023)	500,000	0.00	Final testing subject to access availability	

	y activate the fire pump due to the loss of pressure.							
5	Outstanding injection works required for the rectification at the basement level: Inject of the approved injection materials through the injection points to stop the water leakage which occurred thru the water proofing compartment.	No action from SPQ to date	AQ5AQ6-KER- SPQ-LET-1490, dated 14 December 2021 ⁶⁶⁶	Claimant intends to undertake work before January 2023	360,000	0.00	Whenever leakage observed through injection box, injection works get carried out. Claimant deployed some third party for some time and they damaged the injection box and applied non approved material, same was notified to engineer	
6	Back-props kept at the basement driveway due to incompleti on of Ground floor beam strengthening: During the construction Envac pipe (Solid Waste Pipe) had been re-routed, which led to being penetrated through one of the Ground Beams near AQ6, which required to be re-strengthen prior to removing the back-props at the basement. These back-props now block one of the driveways at the basement level.	No action from SPQ to date	AQ5AQ6-KER- SPQ-LET-1496, dated 23 January 2022 ⁶⁶⁷	Claimant intends to undertake work after World Cup (early 2023)	150,000	88,000.00	Late changes due to ENVAC works (which was not in SPQ scope). Also engineer failed to provide revised design.	
17	Outstanding water tanks access door installation for water tanks at basement and 20th floor: access door for the water tanks not yet completely installed	No action from SPQ to date	AQ5AQ6-KER- SPQ-LET-1509,dated 16 May2022 ⁶⁶⁸	Claimant intends to undertake work after World Cup (early 2023)	24,000	0.00	Completed	

	which led to the water evaporate from the tank into the room space.							
18	Outstanding upper roof access ladder installation: the access ladder to provide access to the upper roof level was not installed by SPQ.	No action from SPQ to date.	AQ3AQ4-KER- SPQ-LET-1234, dated 30 November 2020 ⁶⁶⁹	Claimant intends to undertake work after World Cup (early 2023)	7,000	0.00	Not part of the scope notified to engineer with ref:	AQ3AQ4-SPQ-KER-GEN-LET-1417 ¹⁸⁷
9	Outstanding Works to render garbage chute system fully operational: garbage chute system not operational at taking over.	No action from SPQ to date.	AQ5AQ6-KER- SPQ-LET-1510, dated 16 May 2022 ⁶⁷⁰	Claimant intends to complete the works if SPQ do not complete prior to completion of the defects liability period	TBC	0.00	Claimant using the system since last 2 year and damaged some component, Same was notified to engineer	
10	Temporary Water Meter Connections at AQ5 and AQ6 - Disconnection & Removal: these water meters were provided at the time of the construction to supply water to the plot area. They should have been removed by SPQ on completion, but they did not do so. Presence of same is delaying landscaping , and has a negative impact on appearance of development which is causing reputational damage.	No action from SPQ to date	AQ5AQ6-KER- SPQ-LET-1499, dated 12 February 2022 ⁶⁷¹ AQ5AQ6-KER- SPQ-LET-1503, dated 14 March 2022 ⁶⁷²	These works can only be undertaken by SPQ as they are registered with the water provider.	N/A	0.00	SPQ waiting for authority approval and this is outside of plot boundary. On other hand claimant is deducting utility charges mentioning that Respondent was using permanent connection.	AQ3AQ4-SPQ-KER-GEN-LET-1379 ¹⁸⁸
Total					2,391,000	88,000.00		

¹⁸⁷ Exhibit R-205 – Respondent’s letter dated 7 May 2022 – ref: AQ3AQ4-SPQ-KER-GEN-LET-1417.

¹⁸⁸ Exhibit R-249 – Respondent’s letter dated 2 April 2022 – ref: AQ3AQ4-SPQ-KER-GEN-LET-1379.

Claim for Costs Relating to Rehousing of Tenants

165 In paragraph 11.32.2 of the Statement of Claim, the Claimant indicates that it seeks to be compensated for the cost of rehousing tenants and relies on the details set out in Schedule 2 to the Statement of Claim. Schedule 2 reveals that the cause of requiring to rehouse tenants or give them a period of rental free, is all related entirely to the condensation (save for one item which relates to the spa leaks).

166 For the reasons set out above, the Respondent denies that it is liable for the condensation problem or the water ingress at the spa and consequently that the cause of the difficulty is not for the Respondent's account.

167 These difficulties, as set out more fully above, arose from works undertaken in those areas by the Claimant using third party contractors, without notifying the Respondent and without seeking the Respondent's involvement.

168 Moreover, to the extent that the Claimant agreed to incur costs in temporarily rehousing tenants, that is something it voluntarily undertook to do and for which the Respondent is not legally liable.

169 Consequently, the Respondent denies any liability for those amounts claimed.

V. MISCELLANEOUS CLAIMS

170 The Claimant asserts a number of miscellaneous claims comprising of:

170.1 Management time and costs incurred. There is no basis in the Contract or in law for recovery of any such amount which has in any event not been quantified;

170.2 The Claimant asserts the claim for recovery of interest and finance charges. That is a matter for the Claimant in the conduct of its business and there is no basis for asserting such a claim against the Respondent, which has in any event not been quantified;

- 170.3 The Claimant asserts a further claim for “compensation under Qatari Law” which also is not quantified or particularised. For the sake of completeness the Respondent records that any liability therefor is denied;
- 170.4 The Claimant asserts a claim for moral damages arising from an alleged damage to its reputation. The Respondents position is that there is no lawful basis for such a claim which has in any event not been quantified;
- 170.5 Post-award interest is claimed. Given that the Respondent denies all of the Claimants’ claims and contends that the Claimant is substantially indebted to the Respondent, as more fully set out in the counterclaim, the Respondent denies any liability for such post-award interest.

VI. **COSTS**

- 171 These proceedings are governed by the Qatar International Centre for Conciliation and Arbitration (QICCA) Rules of Arbitration. Rule 43 of those rules stipulate:

"43.1 The arbitral tribunal shall fix the costs of arbitration in the final award and, if it deems appropriate, in another decision.

43.2 The term "Costs" includes only: (a) a registration fee to be determined in accordance with Table (1) of the Rules; (b) the administrative fees to be determined in accordance with the Table (1) of the Rules; (c) the fees of the arbitral tribunal to be determined in accordance with Table (2) of the Rules; (d) the reasonable travel and other expenses incurred by the arbitrators; (e) the reasonable costs of expert advice and of any other assistance (secretariat services, translation, etc.) required by the arbitral tribunal; (f) the reasonable travel or other expenses of witnesses to the extent such expenses are approved by the arbitral tribunal; (g) the legal and other costs incurred by the parties in relation to the arbitration to the extent that the arbitral tribunal determines that the amount of such costs is reasonable; and (h) any fees and expenses of the appointing authority in case the centre is not designed as the appointing authority."

- 172 The Respondent will refer to the costs as defined in Rule 43.2 collectively as the costs of arbitration.
- 173 The costs described in paragraph 4.3.2(g) expressly include the successful party's legal expenses and costs of expert witnesses.
- 174 The Respondent submits that it will be successful in all respects and that all the Claimants' claims fall to be dismissed. Alternatively, that it is substantially successful and is thus entitled to be awarded all its arbitration costs.

VII. SUMMARY OF RELIEF

- 175 The Respondent seeks an order from the Tribunal:

- 175.1 Dismissing the Claimant's claim for delay damages, alternatively, declaring that to the extent that any portion of the works was handed over after the extended Time for Completion established by the Respondent, that the Claimant has indemnified the Respondent against any claims for such delays, further alternatively, reducing the claim by a portioning same in accordance with the provisions of Clause 10.2 of the Contract;
- 175.2 Dismissing the Claimant's claims for additional consultant costs, UDC penalties, running costs of utilities and loss of rental;
- 175.3 Dismissing the Claimant's claims for cost of rectification of repairs as set out in Schedule 1 to the Statement of Claim;
- 175.4 Dismissing the Claimant's claims for tenant claims and alternative accommodation costs as set out in Schedule 2 to the Statement of Claim;
- 175.5 Dismissing the Claimant's claim for Employer's back-charging costs, listed in Schedule 3 to the Statement of Claim;
- 175.6 Dismissing the claim for costs for outstanding works as per Schedule 4 of the Statement of Claim;

- 175.7 Dismissing the Claimant's claim for management time, loss of interest, financing costs and charges, moral damages, post award damages;
- 175.8 Granting to the Respondent such further or alternative relief as the Tribunal deems appropriate;
- 175.9 Directing that the Claimant pays all of the Respondent's costs of arbitration.


For the Respondent

Eversheds Sutherland (International) LLP

Date: 15 November 2022